John E. Ivey, Jr., Regional Education: An Experiment in Democracy. Phylon: The Atlanta University Review of Race and Culture, volume X, No. 4, fourth quarter, 1949. (Atlanta, Ga., Atlanta University.)

Ten Reasons Why the Regional School Plan Is Opposed. New Orleans: The Southern Conference Educational Fund, Inc. Undated.

Benjamin Fine, Regional System Is Seen as a Great Advance in Higher Education in the South. Education in Review. New York Times, July 24, 1949.

Regional Cooperation in Higher Education: A Progress Report. Atlanta, Ga.: Board of Control for Southern Regional Education, July 1949.

Regional Action in Higher Education. A quarterly news letter published by the Board of Control for Southern Regional Education, volume I, Nos. 1, 2, and 3; volume II, No. 1.

Edgar W. Knight, A Unique Plan for Educational Administration. School Management, March 18, 1949.

William J. McGlothlin, The Regional Council for Education: A Beginning Is Made. The Journal of Southeastern Research, January 1949.

William J. McGlothlin, Regional Bootstraps for Higher Education. Higher Education, V, January 1, 1949.

Clyde L. Ball, Constitutionality of the Proposed Plan for Professional Education of the Southern Negro. Vanderbilt Law Review, I, April 1948.

Charles H. Thompson, Extension of Segregation Through Regional Schools, editorial comment in the Journal of Negro Education, volume XVII, No. 2, Spring, 1948. (Washington, D. C.: Howard University.)

Mr. HOLLAND. Mr. President and Senators, great progress has been made in the field of regional education, and further progress will be made not only in the South, but elsewhere in the United States. The Congress, as you know, because of the failure of the Senate to take favorable action, has not given its consent to the southern regional education compact, and the opponents strongly assert that consent is not necessary. The question of approval or disapproval, of course, is not now before the Senate, but I call to the attention of the Senators, Mr. President, that the States have, up to now, hesitated, and properly so, to expend large sums of money as capital outlays across State lines for the expansion of old or the creation of new educational facilities, because of the lack of congressional approval. Under the present situation the program is to all practical intents and purposes confined to the complete utilization of existing facilities and a wider distribution and availability of existing opportunities to the youth of the cooperating States. I hope and believe that congressional approval will come at a later date, and I urge all Senators to study carefully the splendid work being accomplished for both Negro and white citizens under the southern regional education program.

TWO HUNDRED AND FORTY-FOURTH ANNIVERSARY OF THE BIRTH OF BENJAMIN FRANKLIN

During the delivery of Mr. HOLLAND's speech,

Mr. MARTIN. Mr. President, this being the two hundred and forty-fourth anniversary of the birth of Benjamin Franklin, I intended to speak for a few minutes, but, owing to the pressures of time in the Senate, I ask unanimous consent to have my remarks printed at this point in the RECORD.

There being no objection, Mr. MARTIN's statement was ordered to be printed in the RECORD, as follows:

Mr. President, today is the two hundred and forty-fourth anniversary of the birth of Benjamin Franklin, benefactor of all mankind, foremost champion of human liberty and one of the illustrious authors of American independence.

The Commonwealth of Pennsylvania proudly proclaims Benjamin Franklin as its first citizen. I am happy, on this anniversary, to pay tribute to his greatness and to recall, in praise and gratitude, his vast contribution to world progress and to the glory of the American Republic.

I am glad to recall also that this year marks the two hundredth anniversary of Franklin's first election to the General Assembly of Pennsylvania, of which he later became president, and thereby Governor of the State.

Mr. President, every activity in Dr. Franklin's many-sided career was touched with genius. He won world-wide fame as an author, scientist, philosopher, statesman, and diplomat. But he took great pride in his skill as a craftsman and his success as a businessman.

More than any other man of his time he looked into the future with prophetic vision and gave of his wisdom for the benefit of every generation of Americans.

Benjamin Franklin had a clear understanding of the nature of individual freedom. He recognized its priceless value in the affairs of men and nations. He had unlimited faith in the capacity of man for self-government.

He recognized honesty, industry, thrift, tolerance, and liberty as the prime essentials of national progress and individual welfare.

Liberty was the goal toward which he directed his countrymen at a time when much of the world suffered under the misrule of despots and tyrants.

His philosophy of individual freedom was expressed in his words which I now quote:

"They that can give up essential liberty to obtain a little temporary safety deserve neither liberty nor safety."

Franklin's words have come down to us through the years as an axiom of true Americanism. His warning should be remembered wherever the temptation is held out to sacrifice liberty in exchange for so-called security.

Today, as in Franklin's time, liberty cannot be taken for granted. It cannot survive when people place reliance upon government for security rather than upon their own efforts.

Well known in the writings of Dr. Franklin is a philosophical dissertation, told in simple language, and warning against the folly of paying too high a price for that which seems so attractive and so desirable.

The theme of this essay was based on a youthful experience when he bought a whistle paying four times its real worth. From that unprofitable transaction came the advice he gave in later years.

"Don't pay too much for your whistle."

"I conceive," wrote Dr. Franklin, "that a great part of the miseries of mankind are brought upon them by false estimates they have made of the value of things and by their giving too much for their whistles."

Dr. Franklin's reasoning is just as trustworthy and his conclusions just as valid today as they were in his day.

Liberty is too precious to be traded away for the attractive but deceptive promise of happiness and security to be provided by a paternalistic government.

Let us follow the teachings of Benjamin Franklin rather than the present-day exponents of an easy way of life.

Let us not make false estimates of the value of nonessentials in our pursuit of happiness.

Let us so shape our lives and the destinies of our Republic so that future generations shall not say of us that we paid dear, very dear, of our precious liberties in exchange for security that had no more real value than the whistle of Franklin's boyhood.

Mr. SALTONSTALL. Mr. President, coming as I do from the birthplace of Benjamin Franklin, I desire to join in the statement of the Senator from Pennsylvania, as I did last year, on this anniversary of Franklin's birth.

Mr. MARTIN. I thank the distinguished Senator from Massachusetts for his remark.

CHINA, FORMOSA, AND THE FAR EASTERN POLICY OF THE UNITED STATES

Mr. FERGUSON obtained the floor.

Mr. MAGNUSON. Mr. President, will the Senator from Michigan yield for the purpose of permitting me to suggest the absence of a quorum, with the understanding that it will not prejudice his right to the floor?

Mr. FERGUSON. I yield for that purpose under those circumstances.

Mr. MAGNUSON. I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. THOMAS of Oklahoma in the chair). The clerk will call the roll.

The legislative clerk called the roll, and the following Senators answered to their names:

Aiken	Hill	Maybank
Anderson	Hoey	Millikin
Benton	Holland	Mundt
Brewster	Humphrey	Murray
Bricker	Hunt	Myers
Bridges	Ives	Neely
Butler	Jenner	O'Conor
Byrd	Johnson, Colo.	O'Mahoney
Capehart	Johnson, Tex.	Pepper
Cordon	Johnston, S. C.	Robertson
Darby	Kefauver	Russell
Donnell	Kem	Saltonstall
Douglas	Kerr	Schoeppel
Downey	Kilgore	Smith, Maine
Dworshak	Knowland	Sparkman
Eastland	Langer	Taft
Ecton	Leahy	Taylor
Ellender	Lehman	Thomas, Okla.
Ferguson	Lodge	Thomas, Utah
Flanders	Long	Thye
Frear	Lucas	Tobey
Fulbright	McCarran	Tydings
George	McCarthy	Vandenberg
Gillette	McClellan	Watkins
Graham	McFarland	Wherry
Green	McKellar	Wiley
Gurney	McMahon	Williams
Hayden	Magnuson	Withers
Hendrickson	Malone	Young
Hickenlooper	Martin	

The VICE PRESIDENT. A quorum is present.

Mr. FERGUSON. Mr. President, one of the critical problems before the Congress during the past 2 or 3 years has been the quest to discover the key to the great Chinese puzzle presented by our far eastern policy. I think the key lies within the very snarl which makes the picture so puzzling, and I shall proceed to state what I believe it to be.

In self-imposed blindness we have entered, beginning at Yalta, into a whole series of agreements with the Communists which now come back to haunt us in the form of our conflicting and confusing policies. Each one of those agreements, if adhered to, would have held some promise for a world of peace and

friendship. But each has proved to be merely one of the traps set by persons who do not know the meaning of good faith or principle. Those persons are the Communists.

Each agreement has carried with it a moral commitment, which we have sought to preserve. Our insistence on observing our moral obligations has left us far out on the limb time after time in the hard and cruel realities of world politics.

A gentleman is no match for a scoundrel, or a Communist.

It follows that now is the time to take off the gloves and adopt a policy as realistic as that of the Communists.

The many agreements I have mentioned have had these tragic effects:

First. They have violated the essential principle of open covenants, openly arrived at, and have nourished secret diplomacy.

Second. They have confused Congress, the people of the United States, and the nations of the world, as to where we stand from day to day.

Third. They have contained provisions which themselves violate international law. The cover-up practices and policies that result have further jeopardized our world position and our reputation for integrity.

Fourth. They have clouded the high purpose of bipartisanship in foreign policy, because they have shown how little the administration really cared for bipartisanship. It has been said the bipartisan policy was never called into use for the take-off, but only for the crash landing. Our Formosan policy, for instance, was formulated in a secret note at least as early as last October, and reaffirmed in another secret memorandum dated December 23. Such secrecy does nothing but kick bipartisanship out the window. And it has gone further, because not only have Republicans been shut off from discussing matters of fundamental policy, but even Democrats in Congress have been notified only after the fact.

Fifth. They cause our representatives in the United Nations to do one thing while the State Department has secretly decided on another policy.

Sixth. They have misled the Defense Department, the Chiefs of Staff, and the Security Council, who are concerned with the defense questions which follow from our foreign policy. For instance, it is clear that the State Department allowed the Chiefs of Staff to indulge in shadow boxing with the Security Council prior to the meeting of December 29, 1949, which presumably was a meeting to decide the Formosan question. The State Department had already decided that issue.

These are not the criticisms of a Republican. They are statements of fact. They are based on the record. They are important because they are the basis of questions which are being asked today by keen-minded Americans whose only interest is peace.

These are mistakes of the past which must be avoided in the future. These mistakes must not be repeated in the recognition of Communist China.

In the conflict between our ideology and communism, we need China and the Chinese on our side. For, first, one-half of the population of the world is located in Asia; and, second, one-half of Asia's population is in China. Her size, location, and resources make her the political and economic center of gravity in the east.

We recognized this when we made the Republic of China, which was a friend of the United States, a permanent member of the Security Council of the United Nations.

The avowed purpose of communism, whether it be in Russia, China, Yugoslavia, or Czechoslovakia, is to destroy capitalism. The conflict is global. It is for the minds of men. We must not forget we are on the defensive.

There can be no security in Europe, in the North Atlantic, or even in America, no real security anywhere, so long as communism is in a position to impose itself anywhere by force or infiltration, for all Communists are committed to the destruction of persons and peoples who oppose totalitarianism; all Communists imitate the Soviet regime, use its methods, and follow the Moscow party lines.

Recognition of Red China by any country which has been engaged in the fight to contain world communism is surrender on another front of the cold war.

If we recognize Red China, we completely abandon the hopes of all the people of the world, particularly those in southeastern Asia, who look to us for leadership in any effort to resist the inroads of communism. Economic assistance, or whatever else of that nature is planned, cannot buy faith in us if we place our stamp of approval on Communist aggression by recognizing the Chinese Reds.

A recent editorial in the New York Times aptly sums up the far-eastern situation. It was written after the President's press announcement of January 5 on Formosa. It has even more biting application today than it had at the time it was written. The editorial said:

> We have been bamboozled, outsmarted, and trapped into political and moral paralysis which was precisely what the Kremlin intended. There is only one thing left for us to do. We must retrench, regroup, and reform. We have admitted that the moral battlefield is lost. We dare not then lose the next one by the same processes of hesitation, divided counsel, and evasion.

The China question and the Formosa matter are not closed issues. Their nature does not permit them to be locked away like skeletons in a closet. Too many questions remain to be answered, and events may provide responses which no locked door can muffle.

We have yet to have an authoritative opinion, freely expressed, on the strategic importance of Formosa.

It now looks as if the Senate of the United States will be stymied on the question of Formosa's strategic importance until January 26, the date set for the appearance of the Chairman of the Joint Chiefs of Staff and the Secretary of National Defense before the Foreign Relations Committee.

A quick glance, however, at its history and geography should emphasize the strategic importance of Formosa. It contains 13,429 square miles of territory. It lies about 100 miles off the east coast of China. At one place it is only 90 miles offshore. Okinawa is to its north, and the Philippines are only 457 air miles away to the south and east. Japan is 780 air miles to the north and east.

The population is 6,500,000, of whom the main group is Chinese, mostly from the Chinese mainland provinces of Fukien and Kwangtung. The former natives number about 150,000, of whom 30,000 are still classed as savages. This makes Formosa predominantly Chinese and these Chinese have maintained close contact with their kinfolk on the mainland.

Japan has treated Formosa as of great strategic value since 1895 when it was ceded by the Chinese to Japan under the terms of the treaty following the Sino-Japanese War. Japan built it up as an island fortress for its future aggression. After Pearl Harbor Japan used Formosa to launch her attack upon the Philippines and Hongkong and to move southward to conquer the British Empire in southeast Asia.

General Douglas MacArthur, in a warning placed before the National Security Council and reported in the New York Herald Tribune of December 30, 1949, stated that—

> 1. Communist possession of Formosa would endanger the Philippines, American-held Okinawa and perhaps even Japan, and that
> 2. Communist drives made possible by a Formosa base might eventually push America's defenses back to the Marianas, the Hawaiian Islands, and the Pacific coast.

Strategic considerations must cover the possibilities should Formosa ever be occupied by an unfriendly power. This would be the case if the Communist Government of China occupied it, for it would be the same as though it were occupied by the Soviet Union.

On January 5, 1950, a New York Times dispatch from Moscow said:

> Soviet press comment made plain today that the new Chinese Government of Mao Tse-tung could be certain of the full support of the Soviet Union in efforts to establish sovereignty over Formosa.

With absolute certainty, the Chinese Communists are planning an invasion of Formosa as soon as the winter monsoon season in the Formosa Straits is over, which would be by early spring.

I am not satisfied at all that the legal status of Formosa, and our responsibility for it can be easily dismissed either. That is a subject which has not been fully explored in the debate of the past 10 days. I believe it is a subject which demands penetrating analysis, for it involves our national integrity.

I should like to examine that subject briefly at this time before proceeding to my further remarks on our future policy in the Far East and in our world-wide struggle with the forces of communism.

The President, in his January 5 statement, cited the provisions of the Cairo and Potsdam declarations as governing the status of Formosa.

The Cairo declaration was issued December 1, 1943, by President Roosevelt, Generalissimo Chiang Kai-shek, and Prime Minister Churchill. After a statement of general purposes for pressing the war in the Pacific, they stated:

It is their (the Allies) purpose that Japan shall be stripped of all the islands in the Pacific which she has seized or occupied since the beginning of the First World War in 1914, and that all the territories Japan has stolen from the Chinese, such as Manchuria, Formosa, and the Pescadores, shall be restored to the Republic of China.

Note that the term, "Republic of China," is used.

This 1943 declaration was seriously compromised by the secret Yalta agreement of early 1945, which promised Russia certain rights in Manchuria. However that may be, the Potsdam declaration of July 26, 1945, reiterated the Cairo terms in a proclamation defining terms for Japanese surrender, as follows:

The terms of the Cairo declaration shall be carried out and Japanese sovereignty shall be limited to the islands of Honshu, Hokkaido, Kyushu, and such minor islands as we determine.

The Potsdam declaration was signed by President Truman and Prime Minister Churchill and was concurred in by the President of the National Government of China. Russia announced its adherence to this declaration when it declared war on Japan August 5, 1945.

In accordance with these surrender terms Chinese Nationalist troops were designated to occupy Formosa when the Japanese surrendered.

What has happened subsequently raises the question of that island's legal status.

It has always been my understanding and belief that international law requires that territorial changes pursuant to a surrender be accomplished only by a treaty. That feature of international law has particular importance under our constitutional system, because treaties are made by the President of the United States "by and with the consent of the Senate."

It appears, however, that something else has happened with respect to Formosa.

Note that the statements issued at Cairo and Potsdam were purely declaratory in form. But pursuant to them, as the President said in his January 5 statement, "Formosa was surrendered to Generalissimo Chiang Kai-shek and for the past 4 years the United States and other allied powers have accepted the exercise of authority over the island."

What he said in effect was that by our conduct we are estopped to apply international law.

All the other countries of the world, including those in the Pacific, have a right to expect that we will not conduct ourselves in a way to wreck the principles of international law. Yet we have done just that. Take the application of the Atlantic Charter to Formosa.

The people of Formosa had a right to expect that the Atlantic Charter would be applied in their case. The Atlantic Charter says:

They (the signatories)—

And the United States of America was one of the signatories to the Atlantic Charter—

They (the signatories) desire to see no territorial changes that do not accord with the freely expressed wishes of the people concerned.

And—

They respect the right of all peoples to choose the form of government under which they will live; and they wish to see sovereign rights and self-government restored to those who have been forcibly deprived of them.

Mr. MILLIKIN. Mr. President, will the Senator yield?

The PRESIDING OFFICER (Mr. MCFARLAND in the chair). Does the Senator from Michigan yield to the Senator from Colorado?

Mr. FERGUSON. I yield.

Mr. MILLIKIN. That part of the Atlantic Charter, of course, has been violated, and most flagrantly and atrociously in most all our peace arrangements; has it not?

Mr. FERGUSON. I agree with the Senator. But I think we should apply the principles of the Atlantic Charter if we are going to implement, let us say, a press declaration which attempts to give away Formosa.

Mr. MILLIKIN. Mr. President, will the Senator yield?

Mr. FERGUSON. Yes; I yield to the Senator from Colorado.

Mr. MILLIKIN. I am delighted that the Senator from Michigan is entering into this field of inquiry, because I think there should be a foundation in the debate resting on the legal situation so far as Formosa is concerned. I think that involves the question of whether our military leaders during wartime can make permanent disposition of conquered territory. If they can do that, then there is no limit to the power of our military leaders. It seems to me they are entitled to make military dispositions and military arrangements which can last throughout the war, but it seems to me for them to assert that they can make permanent dispositions and permanent future peacetime arrangements because of their positions as military leaders, which necessarily are temporary ones, is to make a very swollen contention which runs contrary to the ultimate peace-treaty powers of the Senate.

Mr. FERGUSON. I appreciate that contribution by the able Senator from Colorado, and I thank him for his remarks, because they fit into the subject I am discussing. I think it is a subject which should be discussed here. I agree with the Senator and I am satisfied that in this case both the facts and the law agree with that analysis.

Mr. MILLIKIN. Mr. President, will the Senator yield again?

Mr. FERGUSON. I am glad to yield.

Mr. MILLIKIN. The question of the legal rights of the parties, so far as Formosa is concerned, of course, makes the greatest difference insofar as action by the United States is concerned, independent of communism or independent of that whole question. If the military leaders are charged in fact with holding the acquisitions from the enemy as trustees for the future disposition by the victorious powers there is a firm legal basis for occupation of Formosa regardless of the Communist question.

Mr. FERGUSON. I thank the Senator for his statement and I agree with it. Later in my remarks I wish to discuss the question of trusteeship. I believe the trusteeship of Gen. Chiang Kai-shek on the island of Formosa is the same as the trusteeship of General MacArthur in Japan, as the trusteeship of our General McCloy in Germany, and the trusteeship of our forces in Berlin. We are trustees until the peace treaty can be settled, and we, I am sure, would defend our trusteeship in Berlin, we would defend it in Germany, we would defend it in Japan.

Mr. MILLIKIN. Mr. President, will the Senator again yield?

Mr. FERGUSON. I yield.

Mr. MILLIKIN. If we are unwilling to defend our trusteeship—if that is the correct term for it—we are then abandoning the consequences of the war, and we are abandoning our victory. Is not that clear?

Mr. FERGUSON. I think that is clear.

Mr. MILLIKIN. I congratulate the Senator on going into that phase of the question, and I hope he goes into it thoroughly, because I think if that is soundly premised, we have a good foundation for the occupation of Formosa independent of the Communist question, and that gets by all this business of whether we are interfering in civil wars, and what our duties are under those circumstances, and whether we are making other people angry by sticking our nose into their business. It comes down to the simple proposition, since the territory involved is conquered territory, of protecting that conquered territory until there is a formal disposition by treaty, in which this body has a direct and constitutional interest.

Mr. FERGUSON. I agree with that statement. It is more important because the Constitution of the United States provides that this body shall have the right to advise and consent to the treaty. Other nations may say it makes little difference to them, because their executive branch might be able to dispose of conquered territory differently than we can. But our Constitution is drawn up on the basis of a different philosophy. The philosophy is that the Senate of the United States shall say what the treaty will be at the conclusion of a war. Is that not correct?

Mr. MILLIKIN. It seems so to me.

Mr. President, will the Senator yield?

Mr. FERGUSON. Yes; I am glad to yield to the distinguished Senator from Colorado.

Mr. MILLIKIN. When we get into these strategic considerations, we have no right to occupy a country simply because it has strategic advantages.

Mr. FERGUSON. I agree with the Senator as to that.

Mr. MILLIKIN. If that were so, we could have our forces all over the world, because there are many countries that have strategic advantages, countries which we might invade, as against certain future contingencies. But that gives us no excuse to move in.

I should like to see laid under this debate the kind of foundation the Senator from Michigan is approaching.

Mr. FERGUSON. Mr. President, the Cairo and Potsdam declarations would clearly seem to violate the terms of the Atlantic Charter, to which I have referred.

The nature of the de facto authority of the Republic of China over Formosa is another point in question.

The Chinese Nationalists clearly believe their authority to be complete, for they have set up in Formosa a government on the order of a provincial government. It is apparent that the United States has not always treated the possession of Formosa as absolute, however. In October 1949 we demanded that the Nationalist Government of China do certain things in relation to its government on Formosa. We even demanded that it change the governor of the island, which was done.

Mr. President, if the President of the United States is correct in saying that we gave Formosa to the Chinese Nationalist Government at the time of the Cairo Conference, why is it that the United States Government demanded certain reforms in the government of Formosa and demanded that a new governor be appointed? I think those facts show the absolute incorrectness of the statement that we did entirely give Formosa to the Chinese Nationalists. To the contrary, it seems to me that at that time, in October, we had in mind that the status of Formosa was to be settled finally by a treaty. As I have just pointed out, we even demanded that the governor of Formosa be changed.

Of course, we have not gone that far in our relationship with Spain; in the case of Spain, all we did was to recall our Ambassador.

Following our demand, the governor of Formosa was changed; and K. C. Wu is now the Governor. He is the Princeton-educated former mayor of Shanghai. I had the opportunity to see him in Formosa, just last December, and he impressed be with having a capacity to administer the affairs of the island. He has taken into office an overwhelming proportion of the local leaders of Formosa, three of his five committee members being Formosans. The Assembly, elected by the people of Formosa, is all Formosan. I had an opportunity to talk to some of the members of their parliamentary body at the time when I was there.

The State Department may say that the island of Formosa is ripe for revolution; but I found no evidence of that when I landed at the airport at Taipei, on Formosa. I shall give the facts upon which I base the statement that I found no such evidence. I was met there by Governor Chen, and we drove from the airport to the city—which has a population of more than half a million—and through the streets without an escort of any kind. Only the chauffeur accompanied us. When I returned to the airport from the city, again I drove with the Governor, leaving the city at 6:45 in the morning; and again we were driven to the airport without guard or without escort, other than the chauffeur.

Mr. President, those facts are absolute proof, to me, that the Communists on the island of Formosa did not have the upper hand. Governor Chen is the man whom the Government of the United States of America asked to have removed as governor. I made inquiry from soldiers there on the island. I made inquiry from other persons. I found that the condition regarding Communists was good. It is true that Communist activities existed, just as they exist here in the United States of America. But they were being reported by the natives—which clearly indicated that there was no foundation to the so-called revolution. The people of Formosa believe that the conduct of the United States and the reports which were being circulated were instigating allegations and rumors and charges of a revolution by the Communists on the island of Formosa, in order that it could be taken away from the Chinese Nationalists.

Mr. McMAHON. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. McMAHON. I ask the Senator whether he believes that the Chiang administration of the island has been a good one.

Mr. FERGUSON. I shall answer that question in this way: For about a year, now, I have talked to our people in the embassy there, and I have talked to others; I have talked to Chinese; I have talked to members of the Formosa Assembly. They said a great reform was coming about. They said, for instance, that the ground rents had been reduced from about 60 percent, so that now not more than approximately 37½ percent could be charged; that certain rehabilitation, insofar as water was concerned, was going on; that money had been stabilized; and that conditions were much better than they had been.

However, when we compare the Government there with a government such as the one we have here in the United States, it was not good; but the people of Formosa, including members of the legislature who were Formosans, believed those reforms were taking place, that more of their own people were being taken into the Government, and that conditions were much better.

Mr. McMAHON. How long was the Senator from Michigan there?

Mr. FERGUSON. I was there 2 days.

Mr. McMAHON. How large is the island?

Mr. FERGUSON. It is about 800 miles long by 200 miles wide.

Mr. McMAHON. Was the Senator from Michigan in the capital of the island?

Mr. FERGUSON. I was.

Mr. McMAHON. Did the Senator from Michigan confer with the officials who now are administering the island—that is to say, Chiang officials?

Mr. FERGUSON. Yes.

Mr. McMAHON. Did the Senator from Michigan go to any other city or any town in the interior?

Mr. FERGUSON. No. I went out into the country.

Mr. McMAHON. The Senator did so within the period of the 2 days in which he was on the island. Is that correct?

Mr. FERGUSON. That is correct.

Mr. McMAHON. Did the Senator from Michigan talk with representatives of the other groups on the island, persons who were against Chiang?

Mr. FERGUSON. I talked to members of the Formosa Legislature, who were Formosans, and who were not in the Chiang regime at all.

Mr. McMAHON. It is upon the basis of the 2-day visit and the fact that the Senator from Michigan was in the capital of the island and for most of his time was with the Chiang adherents that he now wishes to tell us that, on the whole, the island has been fairly well administered and the Formosans as a whole are satisfied with the Chiang overlordship. Is that correct?

Mr. FERGUSON. Plus the fact that I had a long, personal conversation with General Sun, who is in charge of the training of the army. He was vitally interested in this question, and he discussed it, and said conditions were much better and, in fact, that at that time the condition was good.

Mr. McMAHON. The situation there had been rather brutal, had it not?

Mr. FERGUSON. I understand that at first it was not good.

Mr. McMAHON. The Nationalists killed hundreds of thousands of Formosans, did they not?

Mr. FERGUSON. I do not know the number.

Mr. McMAHON. When they went to Formosa, after the Japanese left, they rode with a rather high hand, did they not?

Mr. FERGUSON. Yes; they took over the island.

Mr. McMAHON. "Taking it over" is a euphemistic term for having brutalized the population and having destroyed their economy, according to my information.

Mr. FERGUSON. If I had that information I would give it here on the floor. I shall quote some statements which were made by John MacDonald, who was the American consul general.

Mr. KNOWLAND. Mr. President, will the Senator yield?

Mr. FERGUSON. Yes; I am glad to yield to the Senator from California.

Mr. KNOWLAND. I was very much interested in the statement just made by the Senator from Connecticut. I do not know how long he spent on the island of Formosa, but I am interested to know where he got his information that hundreds of thousands of Formosans had been killed.

There was a period, immediately following the Japanese occupation, in which there was insurrection. However, the highest number I have ever heard estimated, even by the anti-Chiang group on the island, was that perhaps five or ten thousand people might have been killed—which would be altogether too

many if it were done without reason, of course.

But I wondered where the Senator from Connecticut got his figure of hundreds of thousands.

Mr. McMAHON. Mr. President, I think the Senator's correction is a good one. What I should have said was that hundreds of thousands of them were brutalized, dispossessed of their property, starved, and beaten. That is my information. I think the Senator is correct in stating that hundreds of thousands were not killed.

In answer to the Senator's question about how long I stayed on the island, I wish to assure him that I have never been on the island. Perhaps, though, I am almost as competent to talk about it as if I had been there for 48 hours, because I think one of the great errors which can be committed is by persons who spend a few hours or a few days in a country, and then feel that they are entitled to set themselves up as experts on that subject. I should much prefer to form my own impression, in the alternative, upon the basis of careful estimates and careful testimony of men who have dealt for all their lives with these problems.

That is not to say to the Senator that I would not have welcomed adding to that my own personal observations; but I would hesitate, upon the basis of a 48-hour visit, to expatiate as to the economics, the political economy, or the military strategy which might be involved in a particular country.

Mr. KNOWLAND. Mr. President, will the Senator yield at this point?

Mr. FERGUSON. I yield to the Senator from California.

Mr. KNOWLAND. I do not know whether the able Senator from Connecticut is or is not familiar with it, or whether the Senator from Michigan may be, but since the Senator from Connecticut says he would rely on people who had spent the greater part of their lifetime in studying Formosa, I should like to call his attention to a Department of State bulletin, volume 12, for the period January through June 1945; this particular one being the bulletin for June 3, 1945, volume 12, No. 310, the official document of the Department of State, and on page 1019, here is what the Department of State bulletin has to say relative to Formosa:

> Strategic factors greatly influence the problem of Formosa. With the exception of Singapore, no location in the Far East occupies such a controlling position. Formosa is separated from the continent of Asia by 100 miles; from the main island of the Philippines by 200 miles; and from Kyushu, the nearest home island of Japan, by 700 miles. Flying distance from military airports in Formosa is 559 miles to Manila, 410 miles to Canton, 428 miles to Shanghai, 1,290 miles to Tokyo. Formosa, larger than the State of Maryland, stands in a strategic relation to the China coast comparable for the United States to an imaginary island of such size 100 miles off the coast of North Carolina, 400 miles from New York City. Every point on the entire coast of China falls within a radius of 1,100 miles. A radius of 2,000 miles includes Burma, Singapore, Borneo, Guam, and Japan, including Hokkaido.
>
> Formosa has two important ports: Takao and Keelung. The main naval base is located in the Pescadores at Bako, which, in the hands of the Japanese, has been the most important base for Japanese aggression in the southwest Pacific and for preparation of the present war.

I call the Senator's attention to the very able statement in the Department of State bulletin, which runs entirely counter to the bulletin issued on December 23, in which it was said that the island had no strategic interest to this country.

Mr. FERGUSON. I thank the Senator.

Mr. McMAHON. Mr. President, will the Senator yield?

Mr. FERGUSON. I am glad to yield.

Mr. McMAHON. I should like to call the attention of the Senator from California to the fact that at the time the bulletin was written it was written with respect to an island that lay off the coast of China, and which was held by Chiang Kai-shek and his adherents. Today the island lies off land that is totally controlled by the Communists. I may say to the Senator, if the Senator from Michigan will indulge me further for a moment, that I do not welcome for one moment the possession of this island, or any other part of the globe, by those who have their policy dictated from the Kremlin. But I also say to the Senator I think it is high time it was pointed out that the future of the relationships between the Kremlin and the United States of America do not rest in any solution of the Formosan problem, nor do they rest, in my opinion, in any solution of the entire far-eastern situation. I am one of those who believe, and I think the Senate will understand why—at least, the Senator from California will understand why—that the heart of the question does not lie in Formosa or off the coast of China, but it rests in the fact that we are faced with the possession by the Soviet Union of power hitherto undreamed of, to be used, not in Formosa or off the China coast, but to be used, if the event ever occurs, here in the United States of America. It is time we began to reorient this situation and to put first things first. When that standard is applied it will be found that Formosa is near the bottom of a very long list.

Mr. FERGUSON. Mr. President, I realize that the Senator from Connecticut is very critical of one who has come back from Formosa, and who spent a very short time there—too short a time to become an expert or to advise the Senator, who is on the Foreign Relations Committee, and whose party, as I understand, this morning in caucus decided to stand by the President upon this important issue. I realize also that the State Department was not anxious that any Senator visit the island of Formosa. The Senator from New Jersey [Mr. SMITH] advised the Senate how difficult it was for him to get to Formosa. I may state that I had very great difficulty in getting to Formosa. The State Department did not even make clearance for the plane in which I rode to Formosa.

Mr. LUCAS. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. LUCAS. I should merely like to clear up the statement the Senator made with respect to what happened at the Democratic conference this morning. There was no party vote taken at the conference.

Mr. FERGUSON. I should be glad to have the Senator clear it up.

Mr. LUCAS. Very well; I can clear it up. But I do not want the Senate to misunderstand it. In the party conference there was a consensus that the Foreign Relations Committee, headed by the Senator from Texas [Mr. CONNALLY], so far as his position is concerned, was correct, and that the State Department and the President of the United States also were correct.

It is not the little thing we did in conference that is threatening to destroy the bipartisan foreign policy. Ever since they returned from the Old World a number of Senators, including the Senator from Ohio [Mr. TAFT], along with former President Hoover, have been talking about Formosa and about what ought to be done with Formosa. It seems to me that if anyone is attempting to destroy the bipartisan foreign policy, it is the junior Senator from Michigan, along with other Senators who are constantly, here, day after day, denouncing the State Department and the President with respect to what is going on in Formosa and China.

I could not let pass the statements which have been made without making this explanation, and I shall have more to say about the bipartisan foreign policy. What we did this morning does not in anywise destroy the bipartisan foreign policy of the United States. So far as I am concerned, and speaking for myself, I am stronger for the bipartisan foreign policy today than ever before. But it was the Senator from Ohio who recently said—and I heard his voice on the air—that there was no bipartisan foreign policy. He has been attempting to destroy the bipartisan foreign policy for years, and ever since he has been in the Senate. He has, I am afraid, just about convinced certain Senators they should go along with him with respect to it.

Mr. FERGUSON. The Senator has given his version as to what happened in the caucus. I merely want to read the press release, which I was paraphrasing. It reads as follows:

> The Senate's 54 Democrats were practically unanimous today in voicing their support at a party conference for President Truman's hands-off Formosa policy.
>
> Democratic Leader Lucas told reporters that majority Members had been asked to rally behind Mr. Truman and Secretary Acheson to offset Republican criticism of United States far-eastern policy.
>
> "The Democrats are practically united in support of the President and the State Department" and are "fearful that any intervention in Formosa would ultimately mean a shooting war," LUCAS said.

Mr. President, it is apparent we are now going to have some bipartisanship. Both the Republicans and the Democrats are going to have something to say about the Far East. We shall then have bipartisanship; but not if the decisions are to be made by the White House prior to the debate, and even prior to knowledge on the part of Congress of what is going on. I now ask any Democratic Senator upon

the floor of the Senate to rise and tell us that, prior to the 5th day of January, he was consulted by the State Department or the President on what was to be said in the January 5 release.

Mr. McMAHON. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield. I take it for granted the Senator is going to tell us.

Mr. McMAHON. I should like to make this comment to the Senator: I was not consulted by the President of the United States as to the action he took on that date. I may say to the Senator from Michigan, however, that, unlike him, I sat on the Foreign Relations Committee during the past spring and summer. As I stated recently, we listened to the admirals who visited the area in question, we listened to the generals, we listened to the Secretary of State and his assistants. We listened to the representatives of every single branch of the Government that had an interest in it. Before I had the honor to become a member of the Foreign Relations Committee, the committee even took time to listen to the Honorable Patrick J. Hurley. As a result of all that listening, I may say to the Senator that so far as I am concerned, in my estimate of the facts which were adduced before the committee, the President of the United States took a very sensible and judicious position in what he said on January 5. I cannot, therefore, quarrel with it for one moment. The Senator asked Democratic Senators to rise and state whether they were consulted. My answer is that the facts were placed before the Foreign Relations Committee—facts from which the logical position taken by the President of the United States eventuated.

Mr. FERGUSON. Mr. President, I reply to the Senator's statement by saying that the junior Senator from Michigan consulted and conferred with generals and admirals who are now in the Far East on the question of Formosa, on the question of whether the situation should be handled by treaty, or by allowing Formosa to be taken. He received no such report as that which the generals and the admirals are said to have given to the committee.

Mr. KNOWLAND. Mr. President, will the Senator yield for a slight interruption?

Mr. FERGUSON. Yes; I am glad to yield.

Mr. KNOWLAND. It goes on the very issue raised by the Senator from Connecticut. It so happens that on Saturday morning, January 14, 1950, the State Department released a statement dealing with the seizure by the Chinese Communists of our Peiping consulate property. This seizure took place at 9:50 a. m., January 14, Peiping time, which is 8:50 p. m., January 13, Washington time.

According to the official State Department release, the Chinese Communist military authorities, on January 6, issued a proclamation for the seizure of former foreign military barracks in Peiping. On January 7 the Communist authorities addressed an order to the Consul General for requisition of the United States Government-occupied property. On January 7 the United States Government informed the British Embassy of the Peiping developments, and on January 10 requested the good offices of the British Foreign Office to the end that the British officer in charge at Peiping be instructed personally to convey to the Communist regime the serious view we would take of such seizure of our property.

On January 10 the Secretary of State, Mr. Dean Acheson, met with the Senate Foreign Relations Committee in the morning and in the afternoon. He met again with the Foreign Relations Committee on the morning of Friday, January 13. The Secretary of State also met with the House Foreign Affairs Committee on January 11. The developing Peiping situation was not disclosed to either committee of Congress. This despite the fact that on January 10, 11, and 13 the Secretary was meeting with the committees of Congress which deal with foreign relations. They were both in executive session primarily to discuss China and the Far East. I have no present knowledge as to whether or not the chairman of the Senate Foreign Relations Committee and the chairman of the House Foreign Affairs Committee had any information regarding the Peiping situation prior to 8:50 p. m., January 13, Washington time, or 9:50 a. m., January 14, Peiping time, at which time the property was seized.

Yet here was very important information on a subject of vital importance to Senate and House committees and both committees were conveniently in executive session during the period of time the incident was approaching its climax. It is another example of the State Department lowering an iron curtain between itself and the responsible committees of the Congress. I hope that at the next meeting with Secretary Acheson the following questions will be asked and that the State Department will furnish definite answers and I call them to the attention of the Senator from Michigan and the Senator from Connecticut:

First. On what day and hour did the cable relative to the January 6 proclamation by the Chinese military authorities reach the State Department?

Second. On what day and hour did the January 7 order of the Communist authorities addressed to the Consul General for requisition of United States Government-occupied property at 22 Legation Street under the prior order of January 6 reach the State Department?

Third. Was there any prior indication of any type or character written or verbal given to the American authorities at Peiping prior to the issuance of the January 6 proclamation that such action was being contemplated? If so, was such information conveyed to the State Department and on what date and at what hour was such information first received?

Mr. President, the exact time the first information concerning the issuance of the January 6th Communist military proclamation in Peiping reached the State Department becomes significant when it is recalled that on January 5 at approximately 10:30 a. m. the President of the United States was issuing his press statement relative to cutting off any further military supplies to the non-Communist Republic of China, on the island of Formosa, and the British Government, on January 6, was announcing its recognition of the Chinese Communist regime.

Was this merely one of the coincidences of history, or is there any particular significance in the timing of—

First. The President's announcement of January 5 relative to no more military supplies being available to the Nationalist Government of China;

Second. The Communist proclamation of January 6 announcing the taking over of United States property in Peiping; and

Third. The January 6 recognition of the Communist regime by the British Government.

These and other matters deserve more attention than they have had to date. We can only expect to develop a sound foreign policy in the United States if both Congress and the American people have adequate information. The State Department, in my opinion, has been negligent in not keeping the proper committees of Congress informed.

Mr. FERGUSON. I thank the Senator for putting that statement into the RECORD at this place, because I believe it is a matter which should be debated by Senators on the floor. For that reason I have not requested that I be not interrupted, because I believe that in the give and take of debate on the floor we shall be able to solve, at least in our own minds, some of the problems and can advise the public as to exactly what is going on. At a later time I wish to make some remarks upon what happened on the 6th and 7th of January in Peiping, because I think it is very important in connection with a question which I shall discuss, which is the question of recognition of Red China.

When the debate took its present form I was discussing the question of what I found personally in the city of Taipei as to whether there was a revolution about to take place and whether the Nationalist Government was about to be overthrown. I merely cited my personal experiences, because I believe they demonstrate, at least to me, beyond any doubt, that there was not a revolution about to take place, because no governor will ride without escort if he knows or has any reason to believe there is going to be a revolution which is adverse or contrary to his ideas and his thinking. It demonstrated to me that the Communists did not have the upper hand in Formosa, or communism would have been raising its head in the chief capital city of that island.

The Communists naturally have tried to infiltrate into Formosa. Stringent measures were taken to prevent such infiltration by the Formosan administration, with considerable success. John J. MacDonald, American consul general in Formosa, stated that "there was no evidence that the Communists had begun infiltrating into Formosan affairs." That statement is from the New York Times, January 4, 1950. In case of a Communist invasion, therefore, the invaders cannot count on a Communist revolt on the island itself.

The Chinese Reds seem to hold no doubts or fears as to their rights or prospects in Formosa, for it is no secret that they are planning to project their conquest of Nationalist China to the food and industrial center on the island. That matter of right presents a question itself, however, as the Cairo and Potsdam Declarations state Formosa shall go to "The Republic of China" and it is my understanding that the Reds do not claim the character of the former republic as sucessors to the Nationalists.

There is conclusive proof, in fact, that the Chinese Communist authorities do not recognize and will not recognize the treaties of the Republic of China. It has been revealed that on January 13, at 8:50 p. m., Washington time, they proceeded to invade the American consular compound at Pekin. This was all in violation of the protocol signed at Pekin on September 7, 1901, by China and 11 other powers and that right was reaffirmed in the Sino-United States Treaty of 1943 under which the United States relinquished its territorial rights in China.

Mr. MILLIKIN. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. MILLIKIN. Did I correctly understand the distinguished Senator to say that the Communist regime in China does not claim to be the successor of the prior government?

Mr. FERGUSON. That is correct. It claims that it is a new and independent government, a people's government, and it is not to take over any treaty or any other obligation. It will start with new sovereign rights.

Mr. MILLIKIN. If that be true, it would have a most profound effect on the status of that government in the United Nations.

Mr. FERGUSON. Mr. President, that is one of the nubs in this situation. There will be a new government asking to come into the United Nations with no obligations, so far as old Nationalist China is concerned, as to treaties or anything else. It will come in as a new so-called people's government. It is a totalitarian, communistic government.

Mr. MILLIKIN. Assuming the question of the admission of that government as a member of the Security Council, if it claims it is not the successor of the Republic of China, it has no right to sit as a permanent member of the Security Council, has it?

Mr. FERGUSON. Mr. President, that will be the great issue in the Security Council. But I think it indicates clearly what has been occurring. We have recognized no obligation whatever.

I shall come back a little later to the Ward case. I conferred with Mr. Ward this morning on this subject, because I think it has direct significance.

When the Chinese Communists come to the United Nations seeking, with the aid of Russia, admission to the Security Council, they will probably take a different attitude, but today all their conduct and all their statements indicate that they are not going to assume any obligations of what they call the capitalistic government, because they are not its successor. That is why I argue that they should not, under any circumstances, be recognized.

Mr. MILLIKIN. Mr. President, will the Senator yield to me?

Mr. FERGUSON. I yield.

Mr. MILLIKIN. Even if they came for admittance to the Security Council under that theory, that itself would raise a serious question. We denounced our first military alliance treaty with the Monarchy of France on the ground that we were no longer dealing with the same government with which we dealt when we entered into the treaty. In other words, we did not have a treaty with the successor revolutionary government of France, and therefore we kept out of the war which France at that time wanted us to get into against Britain.

Mr. FERGUSON. By now, however, the President of the United States and the Secretary of State appear clearly to have accepted a transfer of the sovereignty over Formosa, as evidenced by their statement of January 5. Such a position flies in the face of established international law. No matter what transfer may be predetermined by agreement among the conquering nations, there can be no finality in the transfer until a peace treaty is made.

Mr. LUCAS. Will the Senator yield at that point?

Mr. FERGUSON. I am very glad to yield to the distinguished majority leader.

Mr. LUCAS. Am I correct in understanding that the able Senator contends that Japan in reality has legal possession of Formosa until a treaty is signed?

Mr. FERGUSON. No. I take the position that now Formosa is under a trusteeship.

Mr. LUCAS. Under what trusteeship?

Mr. FERGUSON. The same one under which General MacArthur is operating in Japan. He is there for all of the Allied Powers until a peace treaty is made.

Mr. LUCAS. Who is in charge of Formosa at the present time?

Mr. FERGUSON. Chiang Kai-shek's National Republic.

Mr. LUCAS. What right has Chiang Kai-shek there if in reality there is a trusteeship?

Mr. FERGUSON. I will state what right I think he has. He has been sent there by General MacArthur's order to take over the surrendered arms of the Japanese there, just as General MacArthur went into Japan to accept the surrender there. Chiang Kai-shek was sent there under an order of General MacArthur known as General Order No. 1, and it is the contention of the Senator from Michigan that he is there, in effect, as a trustee for all the Allied Powers until a peace treaty is made. I shall cite Mr. Martin, who was in the State Department, and I shall cite former Secretary of State Byrnes on the very question, to the effect that it was his opinion that a peace treaty was necessary before a final closing of sovereignty over these conquered nations.

Mr. LUCAS. I agree with the Senator, but who has closed the final sovereignty? The mere statement which the President of the United States made the other day certainly does not close final sovereignty with respect to the island of Formosa. Certainly it will depend ultimately on a treaty between this country and other countries.

Mr. FERGUSON. But the President says in his statement that we have delivered Formosa to the Nationalist Government of China, and therefore we have no rights there at all, that we are estopped from saying that the Nationalist Government is not the supreme and the sovereign power, and it is my contention that Chiang Kai-shek is no more nor less than a trustee of the island of Formosa for all the Allied Powers, and I believe I can prove that.

Mr. LUCAS. Mr. President, will the Senator further yield?

Mr. FERGUSON. I yield to the Senator from Illinois.

Mr. LUCAS. Has the Senator from Michigan a copy of the order General MacArthur issued?

Mr. FERGUSON. I can get the Senator a copy of Order No. 1.

Mr. LUCAS. I think it is important that it go into the RECORD. I should like to see the order.

Mr. FERGUSON. I shall get it. I believe we are not very far apart in the way we think.

Mr. LUCAS. We are quite a way apart, just about as far apart as from here to Formosa. That is how far we are apart.

Mr. FERGUSON. Not if the Senator believes that a treaty should be made.

Mr. LUCAS. I understand the Senator's position perfectly, and I think the Senator understands my position. I am backing up the position of the President and the Secretary of State.

Mr. FERGUSON. Then we are far apart.

Mr. LUCAS. I know we are.

Mr. FERGUSON. We are just as far apart as from here to Formosa.

Mr. LUCAS. And we will remain that far apart, apparently, because I do not think there is any point at which the Senator from Michigan and I could agree between here and Formosa so long as he takes the position he does take.

Mr. FERGUSON. Mr. President, let me tell the Senator what Mr. Byrnes said and what Mr. Martin, of the State Department, said.

Mr. LUCAS. I have heard of many things Mr. Byrnes has said recently, and I should like to hear what he said a few years ago, too.

Mr. FERGUSON. I will tell the Senator what he said.

Mr. LUCAS. Let it be printed in the RECORD.

Mr. FERGUSON. Certainly.

Mr. MILLIKIN. Mr. President, will the Senator from Michigan yield?

Mr. FERGUSON. I yield to the Senator from Colorado.

Mr. MILLIKIN. In my opinion, the temporary occupancy of Formosa, no matter who may occupy it, is not the final decisive question, any more than is the fact that under war arrangements Russia is occupying eastern Germany.

Mr. FERGUSON. The Senator is correct.

Mr. MILLIKIN. Theoretically, at least, we have not abandoned our rights,

as one of the victorious powers, to have a further say about the disposition of eastern Germany. We may be confronted with a fait accompli, and I am somewhat afraid we are, through the stupidity of the arrangements which were made Nevertheless, we still have a right to participate some day in treaty making with Germany which will determine, or should determine, what will happen to eastern Germany.

By the same token the mere fact that our Nation occupies a part of western Germany does not give us any claim to that territory. We are merely occupying it, just as I assume the Chinese Nationalists are occupying Formosa, to the extent such occupancy can be justified, as trustees, against the day of final settlement.

Mr. FERGUSON. It is the contention of the Senator from Michigan that that is the situation.

Mr. MILLIKIN. I believe it is a very sound contention. I should like, if I may, to make one further suggestion.

Mr. FERGUSON. I yield to the Senator from Colorado.

Mr. MILLIKIN. Even if the Chinese Nationalists were not in Formosa at all, even if the Communists were in there, that would not preclude our assumption of responsibility for the final disposition of Formosa. We are obligated, in order to exploit our victory and to secure the results of it, and to meet our responsibilities, to see that Formosa is disposed of according to the final peace arrangements, and as a matter of right we are entitled to take these steps necessary to protect that trusteeship.

Mr. FERGUSON. I think that is the proper thing for us to do, under international law.

As I said, however, if we admit that the whole thing is ended, that legality has nothing to do with the situation, such a position flies in the face of established international law. No matter what transfers may be predetermined by agreement among the conquering nations, there can be no finality in the transfer until the peace treaty is made.

This principle of international law and its application in the case of Formosa is fully substantiated in the authoritative book, The Allied Occupation of Japan, by Edwin M. Martin. Interestingly enough, Mr. Martin is described in the foreword of that book as writing "with the great advantage of knowing, by virtue of his official position in the United States Department of State, the complex but seldom publicized interactions of political, economic, and strategic factors which shape the formulation and execution of occupation policy in Japan."

On page 35 of his book, referring to the Cairo and Potsdam declarations and their support by the United States, Great Britain, China, and Russia, Mr. Martin states:

> With this support, although legal confirmation of the transfer of the territories involved cannot take place until the signing of a peace treaty with Japan, de facto transfers have already been made.

To illustrate the underlying thesis, Mr. Martin notes in his discussion of the Micronesian Islands that—

> Since Japan did not possess full sovereignty over these islands, it is not considered by the United States to be a case of territorial cession requiring legal confirmation in the peace treaty with Japan.

That is from page 37.

Even more authoritative are the views of James F. Byrnes, as Secretary of State. The Department of State Bulletin for February 10, 1946, at page 189, reports a press and radio interview given by the Secretary on January 29, 1946, as follows:

> Asked whether it would be necessary to have a treaty of peace to formalize their transfer (the discussion concerned the Kuerlles), the Secretary replied in the affirmative, adding that was his understanding of all these matters. Pointing out that someone might raise the question that where territory had preciously been in possession of a government, that would not be necessary, the Secretary said that it was his understanding that any cession of territory must be legalized in a treaty, either a treaty bebetween two countries or where a treaty has been forced upon a country that has surrendered, the government is required to sign.

Mr. President, if that is not international law, then the powers which were allied in the last war may sit down together, no matter whether they be the heads of states or subordinates, and may agree what is to take place, and the Constitution of the United States will never have its sway, will never be used, because the Senate of the United States will never hear about a treaty. No treaty will ever be required. Nations may be split up, nations may be divided. All-powerful will be the man who has the sword. That, however, is not the idea of international law. International law has in mind that after a war is over and men sit down around the table they will in sober moments settle the peace of the world, and that the various bodies required to approve the peace will have something to say.

Mr. WHERRY. Mr. President, will the Senator yield for a question on that point?

Mr. FERGUSON. Yes.

Mr. WHERRY. What is going to happen, then, to all the secret commitments which were made at Yalta and ratified at Potsdam? The carving up of the nations of the world has already been accomplished. Does the Senator from Michigan mean to say that when the time comes to sit down and write the peace the parties to the making of the peace will repudiate the selling down the river of countries that now have lost their freedom and have become a part of the Soviet regime, or are at least under her domination?

Mr. FERGUSON. I will answer that by saying that if the State Department's present position is correct, if former Secretary of State Byrnes was not correct, then Joe Stalin at the time the peace treaties are considered can say, "This matter or that matter was settled at Yalta; this matter or that matter was settled at Tehran; this matter or that matter was settled here or there." The result will be we shall have no real peace treaty.

I know the State Department will have to recede from its position. International law will not back up the State Department in its position. There is no logic, there is no justice in the present stand of the State Department.

The President of the United States, by issuing a press release, attempted to write a peace treaty so far as Formosa is concerned. I say to the President today that matters of such deep significance should not be settled by issuing a press release. Even though he believed the Republicans were getting into the act, even though he believed the Republicans were going to have something to say respecting foreign affairs, I say to him that the time was not ripe for him to rush in and, in effect, make a peace treaty by a press release. The matter is too serious to take snap judgment on and issue press releases about. Conquered territory should not be disposed of in violation of the Atlantic Charter. The press release represented a violation of the sacred principles of international law.

Mr. WHERRY. Mr. President, will the Senator yield further?

Mr. FERGUSON. I am glad to yield.

Mr. WHERRY. As I understand, it is the Senator's position that, regardless of any commitment which might have been made by any representative of our Government, the constitutional processes should be adhered to and that anything that is the subject matter for a treaty should be brought before the Senate of the United States for its ratification.

Mr. FERGUSON. I believe that to be true. Any nation which deals with the President of the United States or deals with a general of the United States Army should be made aware of the limitations which the Constitution of the United States places upon them. The President, under the Constitution, has certain powers. During war he makes the war policy. But under international law, and as a matter of justice, he does not have all power. In other words, the President of the United States cannot say, as Louis XIV said, "I am the state," because, after all, the Constitution and the people are the state.

Mr. WHERRY. Mr. President, will the Senator yield further?

Mr. FERGUSON. I am glad to yield.

Mr. WHERRY. I endorse and corroborate what the junior Senator from Michigan has said. The evidence which has been adduced is convincing that agreements and commitments have been made in the past few years which, if they had been brought before the Senate of the United States for ratification, would never, in my humble judgment, have been entered into or ratified.

While the case of Formosa is in a state of flux, while we are trustees for Formosa, I feel, as the Senator from Michigan does, that in the final analysis the people of the United States of America, through their chosen representatives, under their constitutional processes, have the right to pass upon the terms of the peace treaties and to say what shall be thus and what shall be so among the nations of the world.

Mr. FERGUSON. I thank the Senator from Nebraska.

Mr. President, I have raised this question today because I believe it is fundamental to the future integrity of the United States of America, and it is important to our constitutional governmnet that we should think about it. We should make it the subject of bipartisan debate. We should debate the issue.

Mr. WHERRY. Mr. President, I am sorry to interrupt the Senator again. Will he yield?

Mr. FERGUSON. I am glad to yield.

Mr. WHERRY. The debate should be had before any bipartisan commitment is made. The debate should be had upon the Senate floor before representatives of any party pledge themselves respecting the present policy of the United States. If any proposed policy is hammered out here on the anvil of debate and of discussion, and agreement is reached concerning the policy, I shall be perfectly satisfied with such policy. But if we are to have the kind of bipartisan policy which enlarges and sustains commitments of men, when the issue was not brought before the Senate of the United States and here hammered out on the anvil of debate, then I ask the Senator, do we really have a bipartisan foreign policy?

Mr. FERGUSON. I believe such matters must be debated here. I know there are certain matters that can be taken up in Council. But the subject of the Far East was one respecting which the Republican Party was not consulted. As I said before, the President, being fearful that this question would be debated before he had issued an order, issued a press release, and in it he attempted to estop the United States of America forever from saying that international law should say something else. So I say that if the authority over Formosa has passed completely to the Chinese, it serves to justify the President's thinking, and his hands-off policy, but if that be true, this country has been guilty of a serious offense against international law, which requires territorial transfers to be confirmed by treaty; and the executive department has been guilty of an unpardonable offense against our constitutional processes, which require the Senate to ratify treaties.

On the other hand, if legal confirmation of the transfer can be made only by the peace treaty, Formosa has a status resembling a trusteeship until a treaty is made. In that case we, as one of the allies creating the trusteeship, are legally obliged to defend the status quo pending the signing of a treaty of peace. I ask the people of the United States, Why did we defend our sector of Berlin? Because we, as trustees, felt we had a right to hold that sector until the peace treaty should be signed. No one will contend that America wants forever to hold that sector of Berlin. We considered ourselves as trustees, we considered ourselves as being bound by international law, and even though it meant war, we said, "We will carry out the terms of that trusteeship." I see no difference between the case of the Island of Formosa and the case of our sector of Berlin.

In either case our international integrity is at issue. For that reason it is a matter which demands the fullest possible exploration.

The dilemma it represents illustrates the snarled position into which we have worked ourselves in our world position. It emphasizes that immediately we must retrench, regroup, and reform unless we are to entangle ourselves further in a manner which even the expenditure of our wealth cannot relieve.

The immediate test will be our attitude toward the recognition of Red China. Anticipating England's recognition, Pakistan, Burma, India have recognized the Communist regime in China. They did not want to be placed in the position of following Great Britain. England has extended recognition, in the hope of preserving its trade position in Asia. Other countries, such as Norway, have given recognition. The question is whether or not this country shall follow suit.

I wonder why our Government did not call to England's attention before she recognized Red China what President Coolidge said about recognition of Russia. This is what Mr. Coolidge said:

> I do not propose to barter away for the privilege of trade, any of the cherished rights of humanity. I do not propose to make merchandise of the American principle.

Had it been called to the attention of His Majesty's Government, in Great Britain that in effect the action of Britain was bartering away, for the privilege of trade in Hong Kong, the cherished rights of humanity, that it was making of the cherished rights of humanity and the principles of the British Empire merchandise for the highest bidder, the split between England and America respecting recognition, could have been avoided. England not only sold her birthright in this case for a mess of pottage, but she will be lucky if she gets a mouthful of pottage.

Mr. MILLIKIN. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. MILLIKIN. I suggest they will get a mouthful of ashes.

Let me suggest to the Senator that when we recognized Russia, in the hope, entertained by many, that we would better our trade relations with Russia, the direct contrary resulted. I will ask the Senator whether he knows of any increase in our trade rights in Russia since we recognized that nation?

Mr. FERGUSON. No; I do not. About all we got was a nest of espionage agents.

Mr. MILLIKIN. The Senator is exactly right. And all we have is the trade that Russia gives to us, entirely by sufferance. We have no right to trade in Russia at all, and have not had since the recognition.

Mr. FERGUSON. In other words, we get the crumbs from the table.

Mr. MILLIKIN. Yes. So I wonder whether we are simply preparing ourselves for the same sort of deadfall in the Orient.

Mr. FERGUSON. I shall discuss that question.

Mr. President, the United States has been known to follow suit on other occasions. That is why I wish to debate this question today. In this connection, we can recall the occasion when we followed the influence of the British Labor Government by withdrawing our Ambassador from Spain. Thereafter, when the representatives of that nation came before the United Nations, seeking recognition, we even refrained from voting. Imagine that, Mr. President. The representatives of the United States of America, which is supposed to stand upon principle, walked out and took the same position that we find Communist Russia taking time after time, namely, refraining from voting because they do not want to be counted.

We have as yet failed to draw any line of resistance to communism in the Orient, outside of Japan. We backed away from it in Formosa. We can still draw a line, if we will, with a firm policy of nonrecognition.

Mr. KNOWLAND. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. KNOWLAND. Is the Senator from Michigan familiar with the letter sent out by the Communist Party of New York State, under date of March 1, 1949? I hold a photostat copy of it in my hand.

Mr. FERGUSON. I wish the Senator would place it in the RECORD.

Mr. KNOWLAND. And is the Senator familiar with the fact that with the letter was sent an enclosure which included the following statement of program objectives:

> 2. Demand a new China policy.
>
> A. An end to all forms of American intervention in China and of plans to aid any elements and remnants of the Kuomintang.

Is not that the policy which, apparently, the Democratic caucus has gone on record in favor of today, namely, ending all aid to the Kuomintang in China?

Mr. FERGUSON. Mr. President, I think the press release so indicates.

Mr. KNOWLAND. I read further from the enclosure which was sent with the letter of March 1, 1949, by the Communist Party of New York State:

> B. Preparation by our Government to recognize the government which the people of China are now establishing.

Is it not the Senator's impression that up until this most recent incident and the Angus Ward incident, the Government of the United States itself was prepared to recognize the Communist Government of China?

Mr. FERGUSON. I am very much satisfied that that is true.

Mr. KNOWLAND. I read further from the statement of program objectives accompanying the letter from the Communist Party of New York State:

> C. Planning now by our authorities for genuine and self-respecting cooperation with the people's government in China, including normal and friendly trade relations free of any political conditions.

Is it not the impression of the Senator from Michigan that up until this latest affront, we had deliberately left our consular officials behind the iron curtain in the hope of doing that very thing?

Mr. FERGUSON. I am satisfied that is true, and I think the debates on the

floor of the Senate have indicated it, namely, that we took the attitude "Let's wait until the dust settles."

Mr. President, this debate will disclose what actually occurred, and I wish to discuss the Angus Ward case and the case of the loss of our consulate at Peking.

Mr. WHERRY. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. WHERRY. Does the Senator from Michigan recall the colloquy which occured in the Senate last week between the distinguished senior Senator from Texas [Mr. CONNALLY] and the distinguished Senator from California [Mr. KNOWLAND], during which I rose and asked the Senator from Texas what he meant when he said that all the nations of the world were about to recognize Communist China? Does the Senator from Michigan remember that statement?

Mr. FERGUSON. I do.

Mr. WHERRY. In view of the statement just made by the distinguished junior Senator from Michigan, let me ask him whether he now feels that it was the intention of our State Department to recognize the Communists at that time.

Mr. FERGUSON. I do not know whether that was the intention at that particular time, and I would not wish to say at this moment what was then in the minds of the officials of the State Department, because it is difficult for the Senator from Michigan to analyze some of the things which have been occurring.

I think such a move was going on, beginning last September. What we saw in the various places we visited as we went around the world indicated that a movement was under way for all the nations to recognize Red China, and that we were negotiating with the other nations concerning the recognition of Red China.

Mr. WHERRY. Mr. President, will the Senator yield further?

Mr. FERGUSON. I am glad to yield.

Mr. WHERRY. Does the Senator agree that finally the defense was made, "Well, we will not recognize them at this time, but we may do so when the government becomes stabilized"?

Does the Senator remember that?

Mr. FERGUSON. Yes.

Mr. WHERRY. So, when we consider the entire sequence of events, does it not indicate that in the minds of those who have been directing the policy there has been a purpose in line with the statement made by the Senator from Texas, namely, that the major nations of the earth would recognize the Chinese Communists?

Mr. FERGUSON. Yes. But once a nation says it will recognize a Communist government, that makes the Communist government more powerful than ever, and it becomes that much more difficult to do business with them. Under such circumstances, we find such a government taking on certain aspects of the old tribal governments.

Mr. MILLIKIN. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. MILLIKIN. Is not recognition of the Chinese Communist Government the perfectly logical outcome of the attitude of the Government of the United States toward Manchuria and the attitude of our Government in sending General Marshall to China in an attempt to persuade Chiang Kai-shek to take communism into his government? Is not recognition the last logical step in the process?

Mr. FERGUSON. That was Mr. Wallace's policy. Mr. Wallace returned with a report indicating—saying, in fact, in 1944—that Chiang Kai-shek could not govern any longer, that he would be "taken over" in about 60 days, that we should favor the Communists, and that the Communists would be better friends to us than the Chinese Nationalists were.

Mr. MILLIKIN. I suggest to the Senator that that policy was adopted as the official policy of the United States.

Mr. FERGUSON. Yes.

Mr. MILLIKIN. So is not the recognition of that which was in effect requested, merely the logical outcome of the request?

Mr. FERGUSON. I should think so. That is why I raised my voice today on this subject, because I had, and I have, grave fear that we would not even know about it and would not have a right to say anything about it until after recognition occurred. Therefore, I think the time to debate the question of recognition or nonrecognition is now, today, so that our people may know what is going on, so that we can prevent recognition. I hope we can have a bipartisan foreign policy upon the question of recognition.

Mr. MILLIKIN. Mr. President, will the Senator yield further?

Mr. FERGUSON. I am glad to yield.

Mr. MILLIKIN. Did I correctly understand one of the Senators to say there was a Democratic caucus this morning with reference to this subject?

Mr. FERGUSON. Yes. I read into the RECORD the press release from that caucus, and the able and distinguished majority leader gave his version of it.

Mr. MILLIKIN. So the opposition party has made the issue a completely partisan one, through the operation of its caucus?

Mr. FERGUSON. Of course, that is what is called the bipartisan foreign policy.

Mr. MILLIKIN. I see.

Mr. FERGUSON. It is called bipartisan foreign policy; but it is a policy after the fact.

Mr. MILLIKIN. Could it be claimed that those of us who at times have followed a bipartisan foreign policy are obligated now to abide by the action taken by the Democratic caucus of this morning?

Mr. FERGUSON. No; I really think the President of the United States released the Senate Members on this side of the aisle from following the idea of a bipartisan foreign policy when it was decided by the President to abandon the bipartisan foreign policy, as we learn that that was agreed to, judging by his hurried press release of January 5. I think that is the time when the President said to the Nation, "Here she goes out the window; this is the end of the bipartisan foreign policy. We are going to run the show from now on. We do not even want you to think we have a bipartisan foreign policy."

Mr. MILLIKIN. Mr. President, will the Senator further yield?

Mr. FERGUSON. I yield.

Mr. MILLIKIN. I thought I heard the President of the United States say, in his message to the Congress at the recent joint session, that he hoped the bipartisan foreign policy would continue.

Mr. FERGUSON. Yes; but if the Senator will recall in the press release he issued at that time he did not thank the Republicans, although as he read the address to the Congress at the joint session, he had written in it and read to the Congress a statement to the effect that he thanked the Republicans for the bipartisan foreign policy.

Mr. MILLIKIN. Then, should we thank the opposition party for its caucus of this morning?

Mr. FERGUSON. No.

Mr. President, let me say that I want debate, consultation, and agreement, as much as possible, on questions of foreign policy. I regret the fact that I saw our understanding of bipartisan go out the window. I am not regretful if the idea of the opposite party's bipartisanship, under which they did it all and we did nothing, went out the window, but I am hoping we can be taken in and given the facts, and that we can debate the issues. I do not think we have the evidence yet that that is going to happen. I think the fact that, as read into the record by the Senator from California, nothing was said about our consular property being taken over in China until after it was done, is not bipartisanship. I hope we can have genuine bipartisanship. For instance, we need it not only in matters of foreign policy, but let us say we need a bipartisan policy in connection with reducing expenditures of the Government, and lifting burdens from the shoulders of the American people. We need it there. We also need it on the foreign question. We need it in many places. In other words, we need it wherever there is right and justice. We ought to be together on the principle, but we ought to have the facts, first, in order to know whether the principle is right and just.

Mr. KNOWLAND. Mr. President, will the Senator yield on that point, in view of the question of the Senator from Colorado?

Mr. FERGUSON. I am glad to yield.

Mr. KNOWLAND. The second addition to the press bulletin which came out on the Senate's teletype is one in which I think both Senators will be interested. I cannot vouch for it, except to say it comes from a responsible press association.

It reads as follows:

It was made clear by other Senators present that the State Department has assured Senate Democrats that full information regarding far eastern policy will be available to the majority party in Congress. The conference action, which was not subject to a formal vote, appeared to mean concentrated majority party counterfire to GOP charges of bankruptcy in China policy and Republican demands for Acheson's ouster.

The matter was raised at a party caucus by Senators A. WILLIS ROBERTSON, Democrat,

Virginia, and RICHARD B. RUSSELL, Democrat, Georgia.

ROBERTSON, who recently lunched with Acheson at the Capitol, urged all Democrats to stand back of Mr. Truman, the Secretary, and Chairman CONNALLY of the Foreign Relations Committee.

LUCAS reported practically unanimous acceptance of ROBERTSON'S plea, except from Senator ALLEN J. ELLENDER, Democrat, Louisiana, who declared he had some doubts about Formosa's future.

Mr. FERGUSON. I appreciate the Senator's reading the press bulletin. It would seem to indicate that the Democrats not only kicked bipartisan consideration out the window, but today the majority party put it in the ashcan.

Mr. MILLIKIN. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. MILLIKIN. I thank the Senator from Michigan and also the distinguished junior Senator from California for the illumination they have given this subject. I have voted for certain of the so-called bipartisan measures, and I have opposed others. I am now wondering what my duty is under the present circumstances. As chairman of the Republican conference, I wonder, for example, whether I should call a Republican conference, so that we may rubber-stamp what was done by the Democratic conference this morning. That would be truly bipartisan, but I am a little bit uncertain as to whether I ought to do it.

Mr. FERGUSON. I am not only uncertain that the Senator ought to do it, but I should feel the Senator would find it a very difficult position to sustain before the minority conference. I am afraid the Senator would find that Senators would want a different kind of bipartisan foreign policy than one involving our being merely a rubber stamp. But of course, the Senator is in charge of the Republican conference, and I should be very glad to attend and to debate the issue.

Mr. MILLIKIN. The distinguished Senator anticipates that there might not be complete agreement among Republican Senators, if such a caucus were called, does he?

Mr. FERGUSON. Not only that there might not be complete agreement, but that there might be difficulty in obtaining any agreement.

Mr. MILLIKIN. As I recall, the distinguished senior Senator from Michigan has made it very clear in his talks to the Senate that in the China field there has been no bipartisan foreign policy. Is that correct?

Mr. FERGUSON. That is correct.

Mr. MILLIKIN. Bipartisan foreign policy has been rebuffed by the opposition in that field, has it not?

Mr. FERGUSON. It has.

Mr. MILLIKIN. And it was rebuffed again this morning. Is not that true?

Mr. FERGUSON. I believe it was.

Mr. MILLIKIN. I wonder how many times we have to get kicked out of that house before we conclude we are not wanted, at least so far as the Chinese situation is concerned.

Mr. WHERRY. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. WHERRY. Does the Senator feel that any bipartisan policies were announced at Yalta before any issue was raised? Was there any bipartisan policy there?

Mr. FERGUSON. No.

Mr. WHERRY. Did the Senator know anything about the agreement at Yalta?

Mr. FERGUSON. No.

Mr. WHERRY. Did the Senator have any chance to vote on what was done at Yalta? Was it ever brought before the Senate? The Formosa situation is merely an incident in long years of secret agreements being made by men, not through the constitutional processes, under the theory that it was bipartisan foreign policy. I say to the Senator, a bipartisan policy in the settlement of the Formosa question is not enough. If we want to have a truly bipartisan foreign policy, we must go back to Yalta, start with what happened at Yalta, bring it right out into the open, and let the people of the United States of America know not only what was done there, but what has been done under other secret agreements. I ask the Senator, Will there ever be any peace in the world until the sins of Yalta are completely washed away?

Mr. FERGUSON. I am hoping we can establish a system by which both parties, on a global basis, not in Europe alone, but in Asia also, can act on a bipartisan basis. It has been established beyond any doubt that this side of the aisle has never been consulted in regard to Asia.

If we fail to draw the line, we simply launch ourselves into another series of entanglements and self-contradictions. It is a game we can only lose because we do not play ball the way the Communists do.

We will not be sacrificing our moral position in drawing a line against communism at the point of nonrecognition. The greatest morality of the moment is a strong position from which the rights of free institutions may be defended, and to which free people everywhere can look.

It has not generally been recognized, but the course of affairs in China is identical with the course of affairs in eastern Europe.

Both start from a basic understanding between the United States and Russia secretly adopted at Yalta, that the latter should have friendly governments on its borders. That friendly governments mean governments dominated by Moscow was understood by few of the people from the west. That a dilution of Communist control by democratic representation was impossible appears never to have been understood at all.

Our attitude was expressed by Sumner Welles in his book, Time for Decision. He was a high official of the State Department, and he was speaking on the subject of policy. He said:

> The Soviet Government is as legitimately entitled to promote a regional system of eastern Europe composed of cooperative and well-disposed governments in the countries adjacent to Russia as the United States has been justified in promoting an inter-American system of the 21 sovereign American Republics of the Western Hemisphere.

At Yalta, the President of the United States confirmed this line of thought when he wrote a letter to Premier Stalin on the subject of Poland. It has been little publicized. Let us see what the President said:

> I hope I do not have to assure you that the United States will never lend its support in any way to any provisional government in Poland that would be inimical to your interests.

I say now that if we are going to see that a government in Poland is not inimical to the interests of the Communist totalitarian state, then it is going to be a Communist totalitarian government.

Mr. James F. Byrnes, former Secretary of State, saw it more clearly. In his book he says the Soviet "idea of a friendly government was a government completely dominated by them." He failed to convince Molotov at Yalta that "Soviet security would be better assured by having in Poland a people who were friendly, rather than a government that was friendly only because it was dictated to by the Soviet Union."

Our way of filling out the formula for friendly governments was to insist upon free and unfettered elections, and democratic representation in the governments of eastern Europe. Quite naturally the accommodating Russians agreed to that formula. But it took Stalin, in a burst of candor at Potsdam, to puncture the whole bag of wind by remarking: "Freely elective governments in those countries will be anti-Soviet, and we can't allow that." And Stalin did not allow it. Nor did he do anything more than make a plaything of our stand for democratic representation in the eastern European governments. Ultimately we were reduced to a tiresome series of protests, which were entirely fruitless and which inspired replies which were not short of insulting to our intelligence and our dignity.

Take one typical example. The peace treaty with Rumania provided protection to all persons under Rumanian jurisdiction for the enjoyment of human rights and of the fundamental freedoms, including freedom of expression, of press and publication, of religious worship, of political opinion and public meeting.

Four months after the signing of the peace treaty the Rumanian Government dissolved the National Peasant Party and arrested its leader. The National Peasant Party and its leaders stood for the things that were in the treaty. Our Government protested this obvious violation of the treaty terms, and here is the answer we got:

> In principle the Rumanian Government cannot take into consideration observations and recommendations which would constitute acts of interference in its internal policy and which would thus be incompatible with the attributes of a free and sovereign state.

In other words, Rumania said to us that the signer of a treaty cannot protest that treaty's nonfulfillment because to do so would be an invasion of the violator's sovereignty.

What did we do? We rested the matter, for, if the United States were to press it further, it would be guilty of that imperialism for which the Communists have lampooned us in their propaganda and which we have shrunk from countering

in order that we might defend a moral principle. Appeasement is our reply.

In eastern Europe we were completely bamboozled, outsmarted, and trapped until we finally attempted a policy of Communist containment which was to be the Truman doctrine and the Marshall plan.

In Asia there has been a deadly parallel, except that we have not yet drawn the line.

Mr. President, I feel that the thing which has happened to us is that Russia all the time had in mind taking over all Asia, and that in order to lull us into a sense of security she drew a red herring across the European nations so she could have full sway in Asia. We are just about to awaken from our slumber and see the false security Russia has held out.

Mr. KNOWLAND. Mr. President, will the Senator yield at that point?

Mr. FERGUSON. I yield.

Mr. KNOWLAND. The Senator has mentioned communism taking over, country by country. A great many persons in the United States have the impression that Formosa is relatively a small and unimportant island off the coast of China. I think, by putting into the RECORD the State Department's own document today, we have at least demonstrated that competent persons in the State Department felt that it was a strategically located island.

I should like also to call the Senator's attention to the fact, so that the record may be clear, that, according to the World Almanac, Australia, in 1946, had a population of only 7,448,601 persons, and my latest information is that the island of Formosa, which has between six and one-half and seven million people who are natives of the island, plus the influx from the mainland, has probably as many people as are on the continent of Australia.

Mr. FERGUSON. I think that is a correct analysis, and I believe the Senator has made a very worthy contribution to the subject which we are discussing. I think the people must not lose sight of the fact that Formosa is important, as well as the fact that it represents a policy; it represents what is being done in violation of international law. If we make no issue of it we shall end up by saying nothing can be done because this question was settled at Yalta, or at Tehran, or at some other place.

Except that its premises were adopted at Yalta and were so identical with agreements for eastern Europe that they constituted a world plan, our China policy might be called the Henry Wallace plan for Asia."

Henry Wallace, it may be remembered, visited China in 1944 as Vice President of the United States. The State Department's "whitewash-paper" on China says there is no record of a report on that visit. I have reason to believe such a report exists and might be found in the archives of the Army's historical section.

Mr. KNOWLAND. Mr. President, will the Senator yield?

Mr. FERGUSON. I shall yield, and then I shall ask not to be interrupted until I can finish, for it is getting late.

Mr. KNOWLAND. A moment ago I put into the RECORD the total population of Australia. I wish also to put into the RECORD the figures for the population of Greece, appearing in the World Almanac and estimated for 1947. The figures are 7,450,000. Therefore, the island of Formosa has as many persons as have Greece and Australia. To Greece, as the Senator knows, we have already sent a mission, when Greece was disturbed by a domestic revolution, and at the proper time and place, on the floor of the Senate, I shall be prepared to quote from the speeches of the able chairman of the Foreign Relations Committee [Mr. CONNALLY] the importance of avoiding civil war and revolution in Greece, to show that the island of Formosa, with a population of more than seven and one-half million, is of vital importance, and that its people, as the able senior Senator from Michigan has pointed out, are entitled to some consideration before they are surrendered to the wolves of communism.

Mr. FERGUSON. I agree with the Senator. Representatives of the Formosan people have a right to sit down around a conference table with representatives of all other nations, as well as other nations have the right to sit down with us on this question.

Mr. PEPPER. Mr. President, will the Senator yield for a question?

Mr. FERGUSON. I yield.

Mr. PEPPER. I wanted to get, if possible, the Senator's view upon this question: Does the able Senator from Michigan consider the territory of Formosa as being properly a part of China's territory?

Mr. FERGUSON. No; I do not. I think that under the Sino-Japanese Peace Treaty of 1895 it became part of the Japanese nation, a part of the Empire of Japan. At the close of World War II it was surrendered to the Chinese under an order from General MacArthur, and it is now held, as are other islands, until the settlement of the peace treaty.

Mr. PEPPER. The Senator recognizes as a binding and definitive document the instrument entered into between the Chinese and the Japanese after the Sino-Japanese War, and not the document entered into among the heads of Allied Powers.

Mr. FERGUSON. I think that is correct. One was a peace treaty and the other was a declaration.

Mr. PEPPER. Will the able Senator tell us, if he knows, what the attitude of Chiang Kai-shek is as to whether Formosa is a part of Chinese territory or is a part of Japanese territory?

Mr. FERGUSON. I have no idea. International law should control the matter with him as well as with us.

Mr. PEPPER. Will the Senator tell us, from his study of the subject, whether the actions of Chiang Kai-shek have indicated whether he regards Formosa as a part of Chinese territory or as a part of Japanese territory?

Mr. FERGUSON. I would think, from the evidence I found, that he had treated it as Chinese territory.

Mr. PEPPER. I thank the Senator.

Mr. FERGUSON. But I do not think that makes it right.

Mr. President, I have spoken of the Wallace report being in the archives of the Army's Historical Section. I think the nature of that report can be deduced on the basis of other evidence over Henry Wallace's signature. Its nature would be to discredit the Nationalists and Chiang Kai-shek, and to urge a flexible policy which would permit our doing business with the Communists, whom Wallace hopefully saw emerging as the postwar power in China.

The Marshall mission was the culmination of what I would call the Wallace plan in operation.

General Marshall was not sent there by Henry Wallace. He was sent there under the orders of the President of the United States.

The Marshall mission to China and the Hodges mission to Korea were for the purpose of introducing Communists in those Governments. Governments so established were to be Russia's "friendly neighbors" in the Orient. This was the basic Yalta agreement.

When the Chinese Nationalists refused to mix water and gasoline, an experiment we naively endorsed, they were written off our lists and left to shift for themselves against the tide of communism which rose from that point forward, with direct aid from Moscow.

The vicious part of the Wallace plan was that it appeared based on a desire of American officials and others to coerce or destroy Chiang Kai-shek which began to take shape in China in 1943.

The favoring of the Communists by the United States official action began in 1945 in Washington. The result was the President's statement on China policy of December 15, 1945.

The United States active intervention in China's internal affairs took place in a big way in China in 1946. The Marshall mission, under the direction of the President, tipped the scales against the Nationalists and for the Communists. From the time of the Marshall mission, when their success against the Reds was at its peak, the Nationalists began to sink sensationally.

There was a reason for that. We might consider the old seesaw, when the Nationalists were high with a big army, and the Communists were low without one, and ask why did the plans shift and why did the seesaw go where it is at this time? Our State Department says that is the reason we should do nothing.

General Marshall's embargo on exports of arms to China in August of 1946, at the very moment when the Soviet Union was effectively trying to set the Communists up in business with Japanese arms in Manchuria, upset the physical balance and the moral balance in favor of the Communists.

What did we do? We destroyed enormous amounts of Japanese military equipment in Japan which could have been sent to China for the Nationalists. The Soviet Union gave the Japanese arms to the Communists in China. We asked the Nationalists to wait, and the Communists would be able to get the arms, and bring them back and fight with the Nationalists; and the Nationalists did what was requested in order

to please General Marshall and the United States.

Throughout 1946 General Marshall induced the Nationalists not to fight the Communists. This delayed the Nationalist action, which probably would have been successful at that time. He gave the Communists face, and we know what face counts for in China. He gave them opportunity, and this was carried on into 1947.

He decided against giving them Marshall plan aid. When, in 1948, the Eightieth Congress voted aid to China, both military as well as economic, the administration dragged its feet on deliveries of arms and ammunitions. I made speeches against the Nationalists. Why do I say it dragged its feet? Only last week, I think unknown even to the State Department, because I am convinced that the right hand did not know what the left hand was doing, the right hand was sending some aid under the 1948 program from New Jersey, in the United States, from our own shores, while we were saying, "Hands off" in a press release, and the administration was making speeches against the Nationalists. Finally, in 1949, in issuing the white paper when it did, it struck a terrific blow under the belt which greatly impaired the waning morale of the Nationalists and greatly strengthened the Communists.

In order to get some idea of the value of the white paper, look at the way in which Russia used it in the United Nations. One would have thought it was written expressly for them, to be used against the Nationalist Government.

How we could weigh the commitment for a friendly government involved in the Marshall mission against the certain knowledge of Russian designs, and find them canceling each other out, is the real mystery of our foreign policy. But that equation is the explanation of the Chinese puzzle.

The hands-off policy we adopted in China was reasserted in the United Nations, when we found ourselves, on December 6, 1949, voting with the Russians against a proposal to investigate Chinese charges of Russian aggression, and sponsoring a resolution which in turn would be our justification for extending the hands-off policy in Formosa.

Why did we write the white paper? It does strengthen the hands-off policy we now find being used. It was used by Russia in the United Nations.

As the President quoted it, the resolution "calls on all states to refrain from (a) seeking to acquire spheres of influence or to create foreign-controlled regimes within the territory of China; and (b) seeking to obtain special rights or privileges within the territory of China."

That was on December 9, when, according to the State Department, they knew that Russia was already exercising these very influences. By this message and by this resolution we forever cut ourselves off and say, "We will have nothing to say," even though we then knew Russia was penetrating the country, and using it as a satellite, nothing more nor less. But we are paving the road to get out. As I said before, a special note was sent to the Chinese people then indicating that we would not intervene, and we in effect said that policy had been made in October. But it was made known finally to the American people and to the world by a press release.

It is apparent from the remarks of the Secretary of State at the Press Club on January 12 that our Government knew when the resolution was offered that the Soviet Union had even then acquired this very right in Mongolia, Manchuria, and northern China. As a matter of fact, it develops that we were relying on this circumstance to cause another civil war in China so that the Soviet Union's influence might be overthrown and China might again be free from the Kremlin.

I understand from what Mr. Acheson said to the Press Club that China will one day overthrow Communist rule. Can he point to one place where this has happened without outside aid? There are those who have waited since 1919 for the Russian people to overthrow communism. Does any Senator know of one place where this has happened? I know of no such place.

Mr. MILLIKIN. It might be argued that it was overthrown in Spain.

Mr. FERGUSON. Yes, it could be argued that it was overthrown in Spain by a war, but there are those who would contend that communism was not there. I think the Senator is correct, that it was there, and it was overthrown. I stand corrected. I think there was one place.

Yugoslavia comes closest to being such a place, outside of Spain, where some would say the people came close to overthrowing communism. But that is merely a case of national communism holding an upper hand over international communism.

If Russia has not acquired a sphere of influence, a foreign-controlled regime, or special rights or privileges in the territory of China, it is beyond the understanding of any person who has read history in recent years, or the daily papers.

Yet I foresee little prospect of our pressing our resolution in the United Nations.

From its inception, before San Francisco, we have been bamboozled, outsmarted, and trapped there by the Russians. The veto principle was agreed upon at our insistence, for instance, because we foresaw a gentleman's use of that instrument. It has been used to whiplash us, and we have avoided a show-down with the whip's user because we gave it to him, and we do not want him to walk out on the game.

The time to draw a line is now. The place, as I have said earlier, is in connection with recognition.

Our Chinese policy should be considered in relation to our foreign policy as a whole. The question of recognition should be considered in relation to world problems and questions.

A decision to recognize the Communists in China would add to rather than reduce the embarrassments and perplexities regarding the great problem of peace.

If we have any hope of recapturing our moral position before it disintegrates alongside our economic and strategic position, we must assert it by a policy of nonrecognition. We will have ample legal grounds for adopting such a policy.

Recognition is purely a matter of policy. A consideration of national interest may justify one country's recognizing another, and, likewise, a consideration of national interest may justify a policy of nonrecognition.

In international law recognition is "the assurance given to a new state that it will be permitted to hold its place or rank, in the character of an independent political organism, in the society of nations." It definitely implies a diplomatic exchange.

So far as international law goes, it involves no necessary endorsement of a nation's quality or form of government. As a matter of practice, however, this technicality of the law is overlooked by lay opinion throughout the world, and recognition carries with it in the eyes of the world public generally an endorsement of the country's form. Why, otherwise, have we withdrawn our Ambassador from Franco's Spain?

Mr. MILLIKIN. Why?

Mr. FERGUSON. We did it to satisfy a few governments in Europe. We did it because we wanted to impress the world that we wanted some reform in Spain. But in this case we could say recognition does not mean that.

I have heard it stated in the cloakrooms that recognition does not technically indicate that we approve of a government, but I say public opinion does, and we certainly save the face of the nation that is recognized.

Once extended, recognition cannot be withdrawn. Diplomatic representatives may be withdrawn and diplomatic relations broken, but recognition continues.

Except for its relations in Latin America during the revolutionary years there, and certain oddities that have resulted from the aftermath of the war such as the recognition of regimes in nonexistent countries, this Nation has well-defined and well-established tests for recognition.

Mr. McMAHON. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. McMAHON. Does the maintenance of an ambassador by us in Moscow imply approval of the regime in the Kremlin?

Mr. FERGUSON. It does in the eyes of the public. It does in the eyes of the Russian people.

Mr. McMAHON. Does it in the eyes of the American people?

Mr. FERGUSON. To many of them, yes. I think we have had an eye opener. I think we have found that Russia did not live up to her promises that she would not place espionage agents in this country, that she would not try to endeavor to establish her form of international government here.

Mr. McMAHON. I might say to the Senator from Michigan that he is now going somewhat far afield.

Mr. FERGUSON. No, the Senator from Michigan is not going far ahead.

Mr. McMAHON. The question is a simple one. Does the Senator believe the maintenance of an Embassy in Moscow is interpreted by our people as approval of the regime of the Kremlin?

Mr. FERGUSON. To a great extent yes, and in Russia fully.

Mr. McMAHON. I was not asking about Russia. I was asking about the people of this country. I may say to the Senator from Michigan that I think he would be with the minority. I have not taken any poll on the subject, and I presume the Senator has not either, but I certainly believe that the maintenance of diplomatic relations with Russia or with any of the countries which she dominates, is not interpreted by the majority of our people as being an act of approval of the way they have been acting in world affairs.

Mr. FERGUSON. I wish the Senator would take a poll on that question.

Mr. THYE. Mr. President, will the Senator from Michigan yield so that I may propound a question to the able Senator from Connecticut who just asked the question whether the fact that we had an ambassador in Russia would be interpreted by our people as meaning that we held a friendly attitude toward that country. I wish to propound this question to the Senator from Connecticut. Why could we not send a man holding full ambassadorial rank to Spain, just as we have sent a man of full ambassadorial rank to Russia? In what respect is there a difference?

Mr. FERGUSON. I should like to answer that question by saying that the reason for withdrawing our ambassador to Spain was to impress the American people and the Spanish people with the fact that we did not agree with Franco, and therefore we did not approve of his government. So if the sending of an ambassador to Spain would mean recognition of the form of government in Spain, I think the same would apply in the case of Russia.

Mr. THYE. But I should like to have the able Senator from Connecticut answer the question whether he would recognize any specific difference between a full ambassador to Russia and a full ambassador to Spain?

Mr. McMAHON. I might say to the Senator that I do not intend to become involved in a discussion of the Spanish situation at this time. What I want to point out is simply that it has been, according to my information, the time-honored tradition of this country to have diplomatic relations with any government in the world which maintained de facto control over a sufficient period of time; in other words, which was sovereign in its own area. I think a departure from that principle is something which is not justified by our history and our precedents. To me it looks now as though a majority of the nations which acted in the General Assembly some 3 years ago in withdrawing their ambassadors from Spain, made a strategic mistake, because that is not the way, I might say to my friends, in which countries should express their approval or disapproval of a regime in another country. The ambassador is not there for the convenience of the people of the country to which we send an ambassador. He is there for our convenience. He is there as our ambassador, as our listening post. We must look at this matter, it seems to me, realistically and objectively, and add up the advantages and disadvantages to us.

I think the Senator realizes how I feel about the 14 men who are ruling Russia today, and ruling so many other hundreds of millions of people. The Senator is in no doubt as to my sentiments respecting those 14 gentlemen. At the same time I believe we are better off by having an ambassador in Moscow who can inform us to the best of his ability as to the situation there, than we would be if we did not have that listening post there.

Mr. THYE. Mr. President, will the Senator yield further?

Mr. FERGUSON. I yield.

Mr. THYE. I should like to ask the Senator from Connecticut another question. I interpret his statement to mean that the State Department is really inconsistent in first recognizing Russia and sending a full-fledged ambassador to Russia, but denying the United States the right to receive the same kind of intelligent report, so to speak, from Spain by having a full-fledged ambassador in Spain. The State Department, according to the Senator's own statement, is inconsistent. I personally have somewhat the same conviction the Senator from Connecticut has expressed. It is for that reason I asked the Senator from Connecticut the question whether the State Department is not inconsistent in denying Spain a full-fledged ambassador, and at the same time assigning a full-fledged ambassador to Russia.

Mr. McMAHON. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. McMAHON. I might point out to the Senator from Minnesota that we do have a chargé d'affaires, we do have a fully operating mechanism inside Spain. The Senator was present as a guest of the Foreign Relations Committee the other day and he heard the Secretary of State discuss our relations, not only in the Far East, but in western Europe as well. The session was an executive one, and I do not intend to pursue that subject any further. I simply wish to say that I do not think the present is a proper time to go into a discussion of the Spanish situation, which has many, many ramifications which cannot be understood unless many circumstances and facts are examined. I do not intend to do that extemporaneously in the process of this debate. I still say that the conception that the purpose of having an ambassador in a foreign country is to please the people of that country, is totally at variance with our history and with what I regard to be common sense. He is there in order to serve us.

The Senator can say, "If that be true, then we ought to have a full-fledged ambassador in Spain to serve us in our relations with Spain." That is a subject which I do not see at this time to be apropos. I merely again assert the fact that our Ambassador in Moscow is there for our convenience and not for the convenience of the gentlemen of the Kremlin.

Mr. FERGUSON. I wonder whether the Senator from Connecticut would answer the question as to whether he believes that Red China should be recognized.

Mr. McMAHON. I would say to the Senator that I am not prepared to come to a conclusion on that matter today. The action taken in Peiping last week certainly did not predispose me to grant recognition. After all, if it was the idea of the men who are now in control of China that we could be forced into taking action because of what they did, I think they misjudged the situation. As to what I would say 6 months or a year from now the Senator from Connecticut cannot answer the Senator from Michigan, because I do not know what the facts then may be. However, I again would like to say, if the Senator will indulge me, that we apparently have started on a long-distance talkathon upon the subject of Formosa.

Mr. FERGUSON. The Senator has not cut it down today.

Mr. McMAHON. I thank the Senator for his implied compliment. I have not attempted to speak at length on this subject, and perhaps, in view of the Senator's remark, I should immediately desist. I do not wish to trespass on his time. I realize the Senator has a 5-hour speech, and perhaps he should have been permitted to go through it without interruption. But I will say to the Senator again that he cannot change the fundamental facts that the future of our relations with the Soviet Government will not be affected materially by whatever happens to Formosa. That will be determined upon a different basis, upon different events, with which many of us here in the Chamber are only too familiar.

Mr. FERGUSON. Mr. President, I cannot follow the logic of the Senator with respect to our having an ambassador to one country for our convenience, and then withdrawing him to impress the people of America with the fact that we do not agree with the government of the country to which he was sent, while to another country we send an ambassador, and do so solely because it is for our convenience that he should be there, and then we find that government seizing the property occupied by the ambassador, and yet we do not withdraw him. I simply cannot follow that type of logic. But I understand that within the next few months, as the dust settles, it will become the policy to recognize Red China. There will probably be no sadder words uttered than those words of recognition.

Mr. President, I hope that America will be prepared for the news when and if the time comes that we recognize Red China. I hope we shall have debated the subject, even though it may take a number of hours. I said when I began my remarks, that I wanted, that I welcomed a debate on this important subject.

Secretary Hull in 1936 quoted an instruction dated in 1900 and which itself

cited practice for over a century, as follows:

> The rule of the United States is to defer recognition of another executive * * * until it shall appear that it is in possession of the machinery of state, administering the government with the assent of the people thereof and without substantial resistance to the obligations and responsibilities incumbent upon a sovereign state under treaties and international law.

We have to look at what happened in Russia and what happened in China on the 6th of this month, and what happened in the Angus Ward case. But, Mr. President, our sad plight is that we learn from history the fact that we do not learn from history; that is the correct application of the old axiom.

The history of our recognition policy toward Soviet Russia illustrates the application of these tests. One might add that the history of our relations with Russia since recognition in 1933 proves also how unreliable can be the terms of a recognition of any Communist regime.

Secretary Hughes, in 1923, stated that the United States did not intend to recognize Soviet Russia until Russia acknowledged its liability for the debts contracted by previous governments of Russia, agreed to make restitution to American citizens whose property was confiscated, and ceased its revolutionary activity in the United States.

Mr. President, it was only a few months ago that, in New York City, there was a trial of 11 men who had been carrying on revolutionary activities in the United States of America, instigated from the Kremlin, the same Kremlin which, back in 1933, was recognized by our country under the solemn pledge that they would cease their revolutionary activities in the United States. Yet now, when our country is even considering the recognition of another Communist regime, Members of the Senate are saying on the floor of the Senate that they do not know what developments 6 months' time will bring forth. Mr. President, what have the years between 1933 and 1950 brought forth? They have brought forth nothing but absolute proof that we cannot recognize a Communist regime and be able to depend upon the terms of the recognition.

Also in 1923, President Coolidge put the case in a manner which, as I have said, should have been brought to the attention of Britain before her recognition of Red China. Britain consulted the United States of America in regard to what to do in this case. Why did not our State Department officials tell Britain what President Coolidge said in 1923? Let me refer to a conversation I had with the British Foreign Minister when I was in Britain. I was there for 1 day only; and in that connection let me point out that we find that Mr. Jessup spent only 2 days on Formosa getting "all the facts." When we were in Britain we know that Britain was going to recognize China. When we were in Hong Kong we knew that Britain was going to recognize China. But, as I have said, it is too bad that we do not have evangelists for the American way, rather than apologists for what we are doing. Oh, for someone to have called to Bevin's attention what President Coolidge said about the recognition of a Communist government. Let me read it to the Senate:

> Our Government offers no objection to the carrying on of commerce by our citizens with the people of Russia. Our Government does not propose, however, to enter into relations with another regime which refuses to recognize the sanctity of international obligations.
>
> I do not propose to barter away for the privilege of trade any of the cherished rights of humanity. I do not propose to make merchandise of any American principles.

Mr. President, that was good advice; that was sound logic; that was sound reasoning. That was the reason why the United States of America did not recognize Red Russia.

In 1933 President Roosevelt and Ambassador Litvinov exchanged notes in which the latter gave assurance that if the United States would recognize Russia that country would do certain things in accordance with its obligations at international law. The prime emphasis was on an assurance that Russia would not promote any subversive activity in this country. On the basis of those assurances, recognition was granted. However, at the trial of the case in April of 1949, in New York City, we had absolute proof that the Russian Government did not cease promoting subversive activities in our country, and had no intention of doing so.

Mr. President, I ask the Senate of the United States and the people of the United States, how long must we see these incidents, but pay no attention to them? How long must we know what communism stands for, but pay no attention to it?

Let us go back in history a little, to the time when Hitler wrote Mein Kampf. In that book he told the world exactly what he wanted to do. Did we pay any attention to it? No, Mr. President—not until it was too late, not until we had gotten into the Second World War.

Joe Stalin has written his intentions and his policy in a manner that all the world can see, in a way that everyone can read. Yet some of the Members of the Senate are blind to what he has written, and do not understand what communism is. Mr. President, until we understand these things, we shall become involved in inconsistencies, in trouble, and in wars.

On the basis of the legal tests which we have established, and on the basis of our experience with Communist governments for the past 17 years, I am of the firm opinion that from this time forward we should grant no recognition to any Communist regime.

Our experience with Communist regimes proves conclusively, beyond reasonable doubt, that we cannot expect anything but substantial resistance to obligations and responsibilities under treaties and international law.

The files of the Federal Bureau of Investigation on the activities of diplomats and others coming from Communist nations who have diplomatic immunity should show—and I say will show—our State Department what we can expect a Chinese Communist embassy, so far as espionage and subversive activities are concerned. I take it that those files are open to the Secretary of State and to others in the State Department, so that they may read what is contained in them. I say they will prove conclusively what will happen if we recognize another Communist regime. Certainly we can expect no reciprocity whatsoever in the exchange of diplomatic representatives. There is no quid pro quo with Communists.

To have diplomatic intercourse with a Communist regime is merely to lift the iron curtain long enough for it to be dropped a few yards from the Embassy door. Senators should read General Bedell Smith's statement about how he was treated while he was our Ambassador to Russia. I once spent some time with a British Ambassador, discussing how the British were treated in Moscow. Anyone who has discussed that matter with one who has spent any time in Moscow as a diplomat, knows that the iron curtain is pulled down right beside the door of the Embassy; and anyone who leaves the Embassy to go outdoors there, can do so only when under Russian guard.

Since our municipal laws do not allow the restrictions upon movement and activity to which our diplomats behind the iron curtain are accustomed, recognizing a Communist regime means, in our case, setting loose within this country a new horde of espionage agents cloaked with diplomatic immunities and privileges. Their activities are flagrant violations of international law, against which we are almost wholly powerless to guard.

Following such recognition, we can only expect further outrages of mistreatment against persons and property, in violation of international law, as represented by the treatment of Angus Ward; of the two downed American fliers in China, Meschter and Willis; of the two ship's officers who were kidnaped and taken to Korea; and the treatment of our businessmen in Hungary.

From Red China we can expect no regard for the treaties made with China, for the new regime denies that it is the successor of the Republic of China.

Here is what our State Department said in regard to the seizure of American consular property in Peking on January 13, 1950:

> This violation of consular property has arisen in almost immediate sequence to the harsh and unjustified treatment of the United States Consular General, Angus Ward, and his staff at Mukden. It also is one in a long series of mistreatment of Americans which includes the beating of Vice Consul Olive in Shanghai and the continued detention of Messrs. Smith and Bender, United States naval personnel.

Mr. President, let all of us consider those incidents. Let us realize that all the facts about the Angus Ward case are known by our officials, for he has returned to the United States. I had the privilege of talking to him today. I was trying to understand why China would do such a thing, why China would seize our property the day following our saying we would not defend Formosa. Mr. President, do you know why the Chinese Communists acted that way? They did so because they wanted to demonstrate,

for political, propaganda purposes, "We have a strong government in China. We, the Communists, can stand up to the big United States, and we can say to it, 'You cannot appease us. We won't recognize the fact that you say you will not help Communist China. We are going to tell you, big America, where your place is. We are going to take over your consular property'." And they did take it over.

What shall we do about it? What we did when Mr. Ward, in Mukden, was asked whether he had the title to certain property there in his possession? He replied, "No, I am only an administrative officer, the titles would be in Washington," to which the Communists replied, "If you do not have the titles, we will take them over." Let us consider the Ward case. Is it something new? It has gone on for 14 months. Mr. Ward was put behind the iron curtain. He was detained for 13 months, while at the same time the United States of America was carrying on, sending ships into Shanghai. How are we to expect a consular agent to feel when he is imprisoned, and when his Government is not doing anything about it, but when, in fact, his Government is trading with the enemy of its own people? Why did the Communists do it? They did it to defy big America. They did it for propaganda purposes. All over China, wherever it was possible to circulate the story, the Chinese people were told "America is the imperialist, who has agents in this country." How did they do this? They put Ward in prison, and then, let us imagine, they put in the Chinese newspapers that he was the head of the espionage agents in China for capitalist America. Did they ever try him on that charge? No, except after he was leaving.

Let me cite the facts. They did not have a case against Ward as being an espionage agent. They could not put him on trial on that charge. But the stooges of the Kremlin trumped up a case against him. Oh, yes; they hoped Ward would break down, after 28 days in prison, when the frost was on the windows and when he had on only a suit of clothes. For 28 long days he remained in prison. Thank God, he was a character who would not sign a confession in order to obtain his release. It was offered to him the easy way, many times. Mr. Ward comes from Michigan. Men of Michigan are made of firmer stuff than to give the Communists a confession, which in this case would have been absolutely false, to back up their propaganda. Mr. Ward had spent 14 years in Soviet Russia. He knew what to expect. He knew when he was put in prison what they would try to do in order to obtain a confession. But he and his chief man stood up and said, "No." If death came, death would have to come, but he was not going to sell America short for Communist propaganda purposes. Does he believe that Mao is a Tito? No. No; these people are trained in Russia. They know nothing but the Russian method. Everything that was done in relation to his trial was identical with what would happen in Russia and with what has happened in Russia. The attempt to obtain confessions proceeded. The confession of the Italian who was in our embassy, absolutely false as it was, bolstered up their propaganda. They even got a Japanese to confess, though the confession was later repudiated by him. Then what did they do? They could not press the espionage charge against Ward. They put him in prison and tried him for assault and battery alleged to have been committed upon a Chinese servant. The case had been trumped up from beginning to end. All the men were tried. I wish I could relate graphically how it all happened, how efforts were made to wring confessions from them. The prisoners had no counsel at the trial, no right to ask questions, no right to contradict anyone. The man who had conducted the efforts to obtain a confession from Ward sat as one of the three judges during the trial. He sat at a desk, holding a paper on which questions were written. He held them in a newspaper, so they could not be seen. He asked slanting questions; for example, "What did you do?" Or "Did you not do this, after you beat this man?" They have learned that technique from us. We can remember the question, "When did you quit beating your wife?" It is the same technique.

What did they do? They found everyone in the embassy guilty of assault and battery and ordered them deported. There were three Russians working for our embassy. They were found guilty. Were they deported? No. Immediately after the conviction, when it was learned that three Russians had been convicted and ordered deported, their consular agent called and had the sentence stayed or rescinded, so far as the three Russians were concerned. That is the way they do business. What a great lift it gave those few Russians there. Let me say, what a great lift it gave to the trained Communists. Their men were out. The sentence was set aside so far as they were concerned. It was told to all the Chinese people, "Russia is our aid, our assistant." The Communists are in China for the sole purpose of delivering to the Communists the goods, chattels, and wealth of China.

Mr. Acheson feels that eventually the Chinese will overthrow the Communist regime. I do not want to wait that long. I think we ought to give the moral support we can. Then what did they do with Ward? After he was convicted in the assault case, which was trumped up, he was tried in absentia on the espionage charge, and they found him guilty. They found him guilty of being the top espionage agent for all the capitalistic nations. He was tried without being present or being allowed to call any witnesses in his behalf. He was deported together with all the other defendants in the case. The charge against him was made for propaganda effect on the minds of the people.

Our State Department could not see what went on in the Ward case. It could not see exactly what was going on in the consular case, on the 13th of December.

Mr. President, if the facts stated do not prove that this Communist nation should never be recognized by the United States of America, what proof does the United States of America need? Angus Ward is a witness to the fact, and our State Department knows his testimony to be true. I say we cannot expect Red China to recognize any international law.

For all these reasons we must not abandon our historic tests and recognize any Communist regime in the future. But there is another and more impelling reason for withholding recognition from Red China.

Nonrecognition of Red China would be the first step in putting an end to the appeasement policies we have entered so blindly, time after time, in recent years. These policies have led us out on one limb after another as we have sought to hold up our end of a bad bargain, while the Communists have scooted off into the night.

It would be a reassertion of that determination to place right above might which had a parallel application in the Stimson doctrine of not recognizing the fruits of territorial aggression, and which did so much to bring America of age and elevate it in the eyes of men the world over.

It would be a beacon of light for all the people of southeast Asia who are hopefully looking to us for some signal that we expect them to hold the line against communism. It would be the first step in regaining our dignity and strength before a world which is alarmed to see us jump when the Communists pull the string. It would reverse years of bamboozlement, trapping, and outsmarting. It would be late, but, I hope, not too late.

Mr. KNOWLAND. Mr. President, will the Senator yield?

Mr. FERGUSON. I yield.

Mr. KNOWLAND. I should like to ask the able Senator from Michigan whether he is familiar with the article which appeared in the New York Herald Tribune this morning, entitled "Must General Bradley Testify?" and written by Mr. Walter Lippmann? Mr. Lippmann is normally a very competent and very observant reporter, but he apparently received some misinformation. He indicates that there has been a suggestion on the part of Senators that, when Secretary Johnson and General Bradley appear before the Foreign Relations Committee, they appear in a public session. I certainly know of no Senator who has made any suggestion, in connection with the taking of testimony dealing with the strategic defense of the country, that either Mr. Johnson or General Bradley testify in public. But there has been a demand that the Senate of the United States, through its Foreign Relations Committee, and the House, through its Committee on Foreign Affairs, ascertain whether the State Department was given advice to the effect that Formosa had no strategic value. That is an entirely different suggestion from the one outlined by Lippmann this morning.

Mr. FERGUSON. The Senator from Michigan has never heard anyone even suggest that those witnesses be heard in public.

OUR BIPARTISAN FOREIGN POLICY

Mr. JENNER. Mr. President, every day that passes confronts us with mounting evidence to prove that our bipartisan